

SOURCES SOUGHT NOTICE (SSN)

This is a Sources Sought notice. This is NOT a solicitation for proposals, proposal abstracts, or quotations. The purpose of this notice is to obtain information regarding the availability and capability of all qualified sources to perform a potential requirement.

This notice is issued to help determine the availability of qualified companies technically capable of meeting the Government requirement and to determine the method of acquisition. It is not to be construed as a commitment by the Government to issue a solicitation or ultimately award a contract. Responses will not be considered as proposals or quotes. No award will be made as a result of this notice. The Government will NOT be responsible for any costs incurred by the respondents to this notice. This notice is strictly for research and information purposes only.

1. **Solicitation:** 15JPSS26N00000063
2. **Title:** International Asset Recovery (IAR)
3. **Classification Code:** R418
4. **NAICS Code:** 541910
5. **Description:** See Statement OF Work (SOW)
6. **Background:** See Statement OF Work (SOW)
7. **Purpose and Objectives:** See Statement OF Work (SOW)
8. **Project requirements:** See Statement OF Work (SOW)
9. **Period of Performance:** The period of performance shall be for a base period of 12-month with four 12-month option periods to be individually exercised at the discretion of the Government.

10. Capability statement /information sought:

Respondents shall:

1. Provide a capability statement that clearly describe their ability to provide the requirements specified in this notice.
2. Provide sufficient details of the respondent (a) staff expertise, including their availability, experience, and formal and other training; (b) current in-house capability and capacity to perform the work; (c) prior completed projects of similar nature; (d) corporate experience and management capability; and (e) examples of prior completed Government contracts, references, and other related information.
3. Provide the respondent SAM UEI number, organization name, address, point of contact, and size and type of business e.g., 8(a), HubZone, etc. pursuant to the applicable NAICS code and any other information that may be helpful in developing or finalizing the acquisition requirements.

Also, respondents are encouraged to provide their opinions about the difficulty and/or feasibility of the potential requirement or proposed acquisition, possible solutions and approaches that may currently exist in the marketplace, and information regarding innovative ideas or concepts.

11. Submission Instructions:

One (1) copy of the response is required and must be in Microsoft Word or Adobe PDF format using 11-point or 12-point font, 8.5" x 11" paper size, with 1" top, bottom, left and right margins, and with single or double spacing.

The information submitted must be in outline format that addresses each of the elements of the project requirement and in the capability statement /information sought paragraphs stated herein. A cover page and an executive summary may be included but is not required.

The response is limited to ten (10) page limit. The 10-page limit does not include the cover page, executive summary, or references, if requested.

The response must include the respondents' technical and administrative points of contact, including names, titles, addresses, telephone, and e-mail addresses.

12. The Government point of contact is Sally Ibrahim at sally.s.ibrahim@usdoj.gov .
13. **All responses to this notice must be submitted electronically to Sally Ibrahim via email at sally.s.ibrahim@usdoj.gov . Email subject line: "Response to International Asset Recovery (IAR) SSN"**
Facsimile responses are not accepted.
The response must be received on or before May 14, 2026 by 12:00 pm Eastern Time.
14. **Disclaimer and Important Notes:**
This notice does not obligate the Government to award a contract or otherwise pay for the information provided in response. The Government reserves the right to use information provided by respondents for any purpose deemed necessary and legally appropriate. Any organization responding to this notice should ensure that its response is complete and sufficiently detailed to allow the Government to determine the organization's qualifications to perform the work.
Respondents are advised that the Government is under no obligation to acknowledge receipt of the information received or provide feedback to respondents with respect to any information submitted. After a review of the responses received, a presolicitation synopsis and solicitation may be published. However, responses to this notice will not be considered adequate responses to a solicitation.
15. **Confidentiality:**
No proprietary, classified, confidential, or sensitive information should be included in your response. The Government reserves the right to use any non-proprietary technical information in any resultant solicitation(s).

STATEMENT OF WORK (SOW) INTERNATIONAL ASSET RECOVERY (IAR)

C.1 Purpose

The purpose of this Statement of Work (SOW) is to provide comprehensive asset recovery support services and support to Department of Justice (DOJ), Department of Treasury (Treasury), and Department of Homeland Security (DHS) forfeiture program investigative agencies, as well as prosecutors and United States Marshals Service (USMS), Treasury and DHS property custodians in cases where some or all of the assets under consideration are located outside the United States (U.S.) and its territories.

C.2 Introduction

Law enforcement efforts in pursuing forfeitable assets beyond the borders of the United States have become increasingly effective over the past few years. The Department of Justice therefore has a need for an International Asset Recovery Support Services Contract to support DOJ, Department of the Treasury (Treasury), and Department of Homeland Security (DHS) law enforcement agencies involved in federal seizure and forfeiture activities.

Services provided under this contract will assist in the recovery, evaluation, and repatriation of illicit assets to the U.S. for disposition and will facilitate the U.S. Government's ability to investigate, identify, restrain, forfeit, and dispose of assets primarily in cases where assets are located abroad. This contract will also provide a means to further the U.S. Government's assistance to foreign governments in the confiscation and disposition of assets pursuant to their respective laws.

The Government will provide sufficient guidance and direction to ensure that no Contractor work involves inherently governmental activities.

Further, the Contractor shall only perform routine asset recovery activities under the close oversight of authorized Government officials.

C.2.1 Background

(1) The extraterritorial jurisdiction provided by statute gives federal prosecutors a powerful mechanism to deprive criminals and criminal enterprises of the proceeds and instrumentalities of their illegal activities, wherever those assets may have been transferred. The ability to obtain forfeiture orders in the United States for property abroad can result in substantial benefits to international asset recovery efforts, both by facilitating the repatriation of illicit assets to this country for disposition and sharing under U.S. law and by providing a means to assist foreign governments in the confiscation and disposition of assets pursuant to their own laws.

(2) Forfeiting foreign based property can have an impact on not just the immediate criminal investigation, but on international relations as well. Because of this, investigators or prosecutors work closely with the DOJ Criminal Division's Office of International Affairs (OIA) whenever foreign assets might become subject to a U.S. forfeiture judgment. The extent and speed of in-country forfeiture assistance can vary greatly depending upon treaty obligations and the operation of foreign domestic law. International requests for legal assistance can touch upon diplomatically sensitive issues and may require coordination with foreign or other domestic investigations.

(3) The OIA is the designated central authority under an extensive network of treaties and agreements which provide the basis for federal prosecutors to make requests for evidence and forfeiture related assistance. OIA works closely with the DOJ Criminal Division's Money Laundering, Narcotics and Forfeiture Section (MNF) and its International Unit (IU), when a case involves forfeiture recovery of property overseas. Each case is different and the degree of assistance provided to the U.S. often varies depending on the jurisdiction where property is located. In some instances, the foreign jurisdiction will be able to enforce a U.S. forfeiture judgment and will be able to assist in the disposition of the assets. However, in many instances the foreign jurisdiction lacks the laws and resources to provide such assistance but will allow the U.S. to take appropriate steps to recover assets.

(4) The Government seeks to procure a single award contract with a highly experienced and expert firm that can provide the full scope of services required for all international asset recovery cases. This contract will not replace any other services under other contracts available to law enforcement.

C.2.2 Types of Forfeitures

The types of forfeitures for which asset recovery services may be required include criminal forfeiture and civil judicial forfeiture.

Criminal forfeiture is an action brought as a part of the criminal prosecution of a defendant. It is an *in personam* (against the person) action and requires that the Government indict (charge) the property used or derived from the crime along with the defendant. If the jury finds the property forfeitable, the court issues an order of forfeiture.

For forfeitures pursuant to the Controlled Substances Act (CSA), Racketeer Influenced and Corrupt Organizations (RICO), as well as money laundering and obscenity statutes, there is an ancillary hearing for third parties to assert their interest in the property. Once the interests of third parties are addressed, the court issues a final forfeiture order.

Civil judicial forfeiture is an *in rem* (against the property) action brought in court against the property. The property is the defendant and no criminal charge against the owner is necessary.

C.2.3 Types of Custody

In a criminal forfeiture action, property subject to forfeiture may be seized pursuant to a criminal seizure warrant, or upon entry of a preliminary order of forfeiture. In a civil forfeiture action, property subject to forfeiture is generally taken into custody pursuant to a seizure warrant, or a warrant of arrest in rem in a civil judicial forfeiture action where the property was not previously seized. The Contractor shall be tasked to provide custody or assist the Government as described generally below and more specifically in task orders issued under this contract.

Regular Custody: The Contractor shall take physical possession of seized property, inspect and condition the property for return to the U.S. or designated U.S. facility (including aircraft, vessels and conveyances), transport the property, provide secure storage, control access to property, and dispose of property as required by a task order.

Administrative Custody: The Contractor shall provide secured space and containers for sensitive property. The seizing agency strictly controls access to such Administrative Custody containers (e.g. locked conex containers).

Custody Pending Inventory: When directed, the Contractor shall take custody of certain property without conducting an inventory until the seizing agency arranges for a joint inventory at a later date. This must be documented on the appropriate chain of custody form by the seizing agent.

Agency Custody: The seizing agency retains physical custody of property.

C.2.4 Workload Data and Information

The asset recovery support work to be performed by the Contractor is described throughout this SOW, with specific tasks identified in Section C.5. The broad scope of this contract offers an expedited approach to the full scope of asset recovery services needed by federal law enforcement on an international scale. It is difficult to accurately predict workload data that is relevant to the future as well as for the Government to predict the ongoing frequency of such criminal activity. However, for purposes of providing a rough workload estimate for this SOW, DOJ anticipates approximately five (5) to seven (7) international asset recovery cases/task orders per annum which would require services under this contract. It should be noted that the scope and level of complexity of each task order may vary.

C.3 Management and Administration

This SOW requires timely and responsive services and technical excellence, and service requests will often require the Contractor to respond to extremely rare needs in a time- sensitive environment. The Contractor shall perform under the direction of the DOJ Contracting Officer (CO), and service requests shall be issued by the DOJ COR upon receipt of a requirement from the Criminal Division's. The COR will also provide technical guidance and contractual oversight within the scope of the SOW and service requests. The CO may also designate specific technical representatives, henceforth designated as Technical Assistants (TA) to provide contractor oversight and authorize work. The Designated Government Official (DGO) may be the COR, a technical expert, or the Government representative for a specific case. As applicable, the Contractor shall comply with country-specific laws to the extent consistent with U.S. law.

While it is not feasible to identify and anticipate all services for which service requests may be issued under this contract, the Contractor may be required to provide assistance necessary to affect the results of the Government's decision to seize, detain, inventory, safeguard, maintain, advertise, sell, or dispose of property under investigation, seizure, detention, or forfeited pursuant to any law enforced or administered by DOJ, Treasury, or DHS.

The Contractor will be requested to provide services to support asset recovery work undertaken through formal methods (e.g., letters rogatory, Mutual Legal Assistance Treaties (MLATs), and executive agreements) as well as a variety of informal methods of obtaining assistance in particular cases in certain countries where such action has the consent of the host country or would not be perceived to violate its sovereignty or be regarded as conducting unauthorized law enforcement operations on foreign soil.

Although the DOJ MNF is the sponsoring office for this contract, the contract may be used at the Government's discretion to satisfy the needs of any DOJ component or in support of any other federal agency's law enforcement mission. Notwithstanding sponsorship, tasks other than those specifically identified in this contract may be ordered by the Government so long as they fall within the general scope of work, have appropriate funding, and have the express approval of the CO. Such tasks may involve direct and incremental costs that are specifically identifiable to a task order and may be of limited duration. The Government will work closely with the Contractor to scope out newly identified requirements that fall within the scope of this contract but may not have been foreseen at the time the solicitation was written. For example, while the Offeror shall not assume the need to manage rental properties or operate an ongoing business under this contract, should these special needs arise, the Government will work with the Contractor as appropriate to define specific requirements.

Prosecuting and Investigative Agencies authorized to request service under this contract include all DOJ, Treasury and DHS law enforcement agencies that have forfeiture authority and are participants in the DOJ Assets Forfeiture Fund (AFF) or the Treasury

Forfeiture Fund (TFF), including future participants as admitted from time to time. The DOJ COR will only issue service requests pursuant to prosecuting attorney or supervisory case agent requests (e.g., service requests will not be issued for forfeiture fund participants that do not have forfeiture authority or custodial responsibilities). While the required tasks are generally similar for all law enforcement agencies issuing service requests under this contract, the individual mission of each agency and component will affect the emphasis and procedures of the tasks. See Technical Exhibit 2 for further information regarding AFF and TFF participants.

C.3.1 Process

Requests for international asset recovery services will be specified through service request issued under the terms of the contract. Tasks will only be issued pursuant to prosecuting attorney or supervisory case agent requests. Prosecuting and investigative agencies authorized to request service requests through the Criminal Division's COR under this contract include all DOJ, Treasury and DHS law enforcement components that have forfeiture authority and are participants in the DOJ Assets Forfeiture Fund (AFF) or the Treasury Forfeiture Fund (TFF) -- including future participants as admitted from time to time.

C.3.2 Work Location

The Contractor shall provide the resources necessary to meet the Government's requirements specified in this SOW, regardless of location.

C.3.3 Personnel Requirements

- (1) The Contractor shall provide a sufficient number of employees with the training, skills, experience, and knowledge to perform the services in this SOW in accordance with the specified performance standards.
- (2) Training of personnel to perform contract requirements shall be the responsibility of the Contractor. The Contractor shall maintain a pool of permanent and appropriately cleared individuals for Key Personnel positions at a level that the Contractor deems necessary to perform work under this contract. (See Section H.9).
- (3) The Contractor shall provide specialized personnel and subject matter experts when necessary to successfully perform services in a service request. Specialized service requests-specific personnel required under this contract may include, but are not limited to, sea captains, pilots, engineers, doctors, expert legal consultants, subject matter experts, etc. To the extent possible, the Government will advise the Contractor in obtaining subject matter experts known to or qualified by the Government. In other cases, the Contractor shall have the capability to independently obtain the proper resources to meet the requirements specified in individual service requests. For example, if a Constitutional law expert is required in the Czech Republic, DOJ may provide the Contractor with a list of experts in this specific area of work. In cases where in-country subject matter experts are required, DOJ will work with the Contractor and other agencies as appropriate to ensure that local nationals, subject matter experts and specialized personnel performing work under this contract meet all necessary security requirements.
- (4) Each employee of the Contractor working under this contract is subject to the security requirements included in the individual service requests. The Contractor shall coordinate with DOJ to obtain appropriate clearances for its key personnel during the Transition/Phase-In Period. For specialized personnel and subject matter experts specifically required by a service request, the Contractor shall work with the COR to obtain appropriate security clearances. In these cases, the COR will work to expedite any necessary clearances. While security requirements may vary by agency and by service request, DOJ will work with Contractor personnel and other agencies as appropriate to ensure proper security clearances are obtained.
- (5) The Contractor shall ensure that sufficient on-board, cleared personnel are available and ready to perform international asset recovery work within ten (10) days after each service request has been issued.

C.3.4 Interfaces and Coordination

- (1) DOJ Criminal Division will perform or assist agencies in ensuring all necessary inter- and intra-agency coordination is accomplished prior to issuing a service request to the Contractor. Further, while the Contractor may work closely with program officials from the DOJ/Treasury/DHS agencies, all Contractor activities will be directed via service requests through the DOJ COR, with requirement origination and technical guidance from the COR in consultation with the International Unit, OIA, Department of State, and the Embassy to include the appropriate legal attaché, to ensure that activities are in accordance with any country-specific protocols, laws, regulations, etc. DOJ will also assist with security and country clearance requirements prior to issuing a service request to the Contractor.
- (2) Note that other than as described in this solicitation and through charges that include the absorption of indirect costs, the Government does not intend to fund the costs of any existing systems or support facilities required by the Contractor to perform the work specified in this SOW. New infrastructure or other necessary costs which are both direct and incremental to a specific task order shall be includable in the related invoice(s).

C.4 Scope

- (1) The Contractor shall provide all personnel, equipment, materials, supervision, and other items and services necessary to perform international asset recovery support services as defined herein.

(2) The Contractor shall provide asset recovery support services worldwide including, as required by the service request, those international investigations where a portion of the assets involved in the case are located within U.S. jurisdiction. This international asset recovery support services contract shall include but not be limited to: support for U.S. officials and delegated authorities who seek to investigate, identify, restrain, forfeit, and dispose of assets under strict requirements the Government places on international law enforcement activities.

C.5 Specific Tasks

At the direction of the COR, the Contractor shall perform the following. Due to the variety in international asset recovery cases, service requests issued under this contract may not require all of the services specified herein. Service requests will clearly specify the support services required.

The Contractor shall perform work in strict compliance with all requirements pertaining to international investigative procedures and protocols established by MNF, OIA, and EOUSA as set forth in the Criminal Resource Manual, USA Book, Asset Forfeiture Manual, and other authoritative guidance. The Government will provide the Contractor with information needed to establish a clear understanding of Government policy and procedures covering international law enforcement considerations such as treaty issues and agreements pertaining to seizing and forfeiting assets abroad.

Decisions regarding the seizure or disposition of property will be made by Government employees, and the Contractor will perform the work necessary to affect the results of the Government's decisions. Further, the Government will provide sufficient guidance, supervision, and direction to ensure that no Contractor work involves inherently governmental activities.

C.5.1 Investigative Support Services

Upon request, the Contractor shall conduct investigative work including detailed analysis of records to accomplish the goals of the forfeiture-related aspects of the investigation(s). Records made available for analysis may include books, ledgers, payrolls, cost reports, billing statements, invoices, correspondence, computer data, bank statements, and other records pertaining to transactions, events, or allegations under investigation. This analysis should be sufficient to perfect legally the Government's interest in forfeitable assets, as well as determine an amount to seek for forfeiture and trace the proceeds of the criminal activity to identify forfeitable assets. This analysis should include the identification of substitute assets where such exist.

The Contractor shall also:

- (a) Provide expertise to conduct a detailed analysis of telephone and dialed number recorder records, and then compare that information to financial, business, and other records to trace the transfer of funds and identify forfeitable assets.
- (b) Provide individuals with expertise in the operation and valuation of specific business entities for the purpose of conducting an analysis to determine the degree to which criminal activity contributed to the overall worth of the business and/or the amount of illegal proceeds generated from the criminal business practices. This analysis will be used in determining the amount to seek for forfeiture and will provide the probable cause for the seizure and subsequent forfeiture of the assets.
- (c) Conduct in-depth reviews of documentation relating to specific investigations for the purpose of establishing the probable cause for the seizure and forfeiture of assets. This review, and the resulting work product, should be sufficient to function as an attachment providing probable cause to a seizure warrant or warrant of arrest in Rem.
- (d) Perform analyses of complex financial, business and other records, documents, and events, and then organize and display these items in a manner that facilitates the determination of probable cause for seizure, and the presentation of evidence during the forfeiture portions of trials or pre-trial hearings and meetings.
- (e) Provide qualified professionals to interact with investigators and analysts of the component agencies, as specified in individual task orders. The professional(s) will assist investigators in developing the forfeiture-related aspects of investigations and draw upon their experiences to provide advice and guidance to agency personnel. This support can include suggesting investigative strategies that will lead to the development of the probable cause necessary for the Government to seize and perfect its interest in forfeitable property.

C.5.2 Litigation Support Services

As directed, the Contractor shall provide country- and/or language-specific litigation support services including by way of example and not limitation the following types of support services:

- (a) Records examination
- (b) Financial analysis
- (c) Link analysis
- (d) Translation support
- (e) Document/discovery management
- (f) Pre-restraint title examination
- (g) Asset valuations
- (h) Ownership analysis
- (i) Legal analysis of local laws impacting ownership
- (j) Transferability and preservation of rights such as grandfathered use, intellectual, and other intangible property rights
- (k) Assistance to investigators and prosecutors in expediting access to foreign evidence
- (l) Assistance to investigators and prosecutors in support of actions brought in U.S courts

(m) Assistance to investigators and prosecutors in providing timely assistance to foreign authorities in support of parallel investigations

(n) Provision of written or oral testimony about the condition or volume of items consigned to the Contractor

The activities listed above may require the Offeror to perform due diligence on country-specific laws and regulations.

C.5.3 Expert Witness Services

The Contractor shall assist in identifying, screening, and selecting foreign expert witnesses to:

- (a) Analyze what property interests particular claimants have pursuant to the law of the specific countries such as Russia, Ukraine, or Taiwan.
- (b) Explain how the country's property interests compare with U.S. property interests.
- (c) Explain what, if any, property interests that nation's court judgments create.
- (d) Analyze whether the conduct in question is criminal under the law of that country.
- (e) Provide expert and summary trial testimony about the country's law.
- (f) Perform independent analysis of the country's law and the property interests particular claimants may or may not have in the defendant assets under those laws.
- (g) Identify statutes, cases, and treaties that explain property interests recognized under the foreign country's law.

C.5.4 International Sharing Program Services

Circumstances sometimes warrant that sharing payments to international partners be part of conditions involving the recipient's purchases of equipment or services. As specified in a task order, the Contractor shall assist the Government in executing and validating spending under specific international sharing agreements.

C.5.5 Other Assistance Services, Special Conveyances and Unusual Assets

The Contractor shall assist the Government in a wide variety of assistance services covering an array of assets. These assistance services may include but are not limited to managing complex assets including businesses with on-going operations; liquidating joint venture interests and negotiable financial instruments; performing post-forfeiture valuations, title work, boundary surveys, property security, marketing and disposition of residential and commercial real estate. This may also involve inspecting aircraft and vessels on short notice and conditioning the conveyance for return to U.S. soil and providing experienced, licensed/certified pilots to accomplish the return.

Other examples of unusual assets that may be covered include racehorses or other livestock that may require veterinary care and feeding; the valuation and disposition of securities, negotiable instruments, derivatives and intangible property that may require special presentment and clearing procedures in foreign or domestic markets and exchange channels.

While it is not feasible to identify and anticipate all assistance services required under this contract, the Government will work closely with the Contractor to scope out newly identified requirements that fall within the scope of this contract but may not have been foreseen at the time the solicitation was written.

C.5.6 Property Management

C.5.6.1 Pre-Seizure Services

The Contractor shall provide pre-seizure coordination and planning services. Such services may require the pre-positioning of resources (Contractor staff and equipment) prior to the actual seizure of the property by the Government.

The Contractor shall pre-position resources at the time and location specified by the COR (e.g., the Contractor may be required to conduct staging approximately 1.5-2 hours away from the seizure location). The Government will coordinate with the Contractor as much as possible regarding required pre-seizure activities.

C.5.6.2 Consignment/Acceptance

The Contractor shall accept custody of property on the date, time, and place specified by the COR on the chain of custody form, disposition order, release and receipt form, or approved alternate form. Consignment shall be completed within 12 hours of time and date designated by COR unless a waiver is approved.

The COR will provide the Contractor with a properly completed and executed official agency chain of custody document for all property accepted into the custody of the Contractor. The Contractor shall verify the custody document for accuracy and completeness prior to acceptance of property. Any discrepancies in item counts on the chain of custody document shall be addressed and resolved with the COR before loading the property on or into the Contractor's transport vehicles/trailers, if required.

The Contractor shall document unresolved disagreements between the Contractor and the COR and process the disagreement as an Adverse Incident following the mandatory procedures detailed in Technical Exhibit 3. The Contractor shall not, however, refuse custody of property covered by this contract in the event of a disagreement.

C.5.6.3 Property Identification

The Contractor shall identify and label all property with the Asset Identification Number (AIN) and case number/sequence number assigned by the seizing agency and with the current location within the storage facility.

The Contractor shall identify and label palletized property from a single seizure with one (1) identification label per pallet. The Contractor shall individually identify and label un-palletized, loose, or sealed containers.

For property in administrative custody, the Contractor shall label containers with a container number. The numbering schema to be used for labeling containers shall include both storage facility number and box number.

When stored, the identification label shall be visible to the maximum extent possible to allow for easy location of property. The Contractor shall be able to locate and provide property within one (1) business hour of request or as determined by the requestor.

C.5.6.4 Storage

The Contractor shall store property in the most cost-effective method available to prevent any deterioration of the property and to maintain the overall condition of the property as it was at the time of acceptance. This shall include providing the proper environmental conditions to ensure no adverse effects from temperature or humidity.

The Contractor shall ensure that seals on sealed packages and containers remain intact. The Contractor shall not be responsible for maintenance or further inventory of the contents as long as the seals remain intact. The Contractor shall, upon direction, provide assistance to the seizing agents to containerize and seal loose property using Contractor-furnished equipment and supplies.

The Contractor shall not invoice the Government for storage boxes (e.g., conex boxes) utilized for full custody that are empty. The COR will be responsible for notifying the Contractor when storage boxes used for administrative custody are empty. The Contractor shall return empty storage boxes and shall not invoice the Government after the contents are removed.

C.5.6.5 Storage of Items Requiring Climate Control

The Contractor shall make reasonable and best efforts to properly store items that must be cooled, refrigerated, or kept at specific humidity levels. The Contractor shall perform necessary inspection and maintenance on items such as perishables in order to preserve them in the overall condition as at the time of acceptance.

When climate-controlled items are received, the Contractor shall follow any designated special handling instructions provided by the COR to ensure proper storage of the items and to prevent deterioration or spoilage.

C.5.6.6 Maintenance

As directed by the COR, the Contractor shall make reasonable and best efforts to maintain and preserve property as necessary to ensure that it retains its value, operating ability, and overall condition from the time of acceptance until disposition. Preservation includes, but is not limited to, protection from heat, cold, humidity, water damage, weather, insects, rodents (rats, mice), dirt, dust, and contamination.

Maintenance of stored property shall be performed within two (2) business days of discovery of deterioration, damage, inoperability, etc.

The Contractor shall inspect and replace deteriorating, torn, and damaged packaging for stored property unless under seal of the seizing agency. Property under seal shall be repackaged only with a seizing agency representative present, unless the Contractor has been specifically granted authority in writing by the COR. Deteriorated, torn, and damaged packaging shall be replaced within two (2) business days of discovery.

C.5.7 Property Disposition

Upon forfeiture or relinquishment of property by the foreign authority, the US government maintains authority over all seized and forfeited property transferred to the Contractor. The Contractor shall maintain seized and forfeited property until its disposition is directed by the COR.

As directed, the Contractor shall dispose of seized and forfeited property in accordance with the disposition order signed by the COR. See Technical Exhibit 4 for a sample disposition order. Disposition of seized and forfeited property may be made by: destruction; remittance; retention by seizing agency for official use; transfer to another federal agency; sale or transfer to a foreign government or an entity designated by the COR. Upon receipt of the disposition order, the Contractor shall execute the disposition using the method identified on the order and verify that the property being disposed of is the same property described on the disposition order, to include quantity and location.

When requested by the COR, the Contractor shall perform disposition analysis to determine and recommend the most cost-effective disposition.

The Contractor shall provide the COR and seizing agent issuing the disposition order a minimum of two (2) business days advanced notice of the date, time, and location of disposition in order to permit the agency to verify the disposition, unless otherwise agreed to by the COR.

The Contractor shall maintain accurate records of all dispositions. The Contractor shall provide an electronic copy of the completed disposition order to the COR and shall send the original authenticated disposition order within two (2) business days (except for cases involving disposition by sale). If there are multiple case numbers/sequence numbers on the chain of custody document, and there is a partial release, the Contractor shall provide a copy of the original chain of custody document to the COR within two (2) business days of accomplishing the partial disposition. The original chain of custody document shall remain with the Contractor until disposition is complete on all items and then shall be submitted as specified above. The Contractor shall only charge the Government for the space occupied by the seized and forfeited items and shall not charge the Government for vacant space as a result of a partial disposition.

Upon completion of disposition, the Contractor shall update the Inventory Control and Management Information System (ICMIS) within two (2) business days.

C.5.7.1 Destruction

The Contractor shall destroy property within five (5) business days of receipt of the disposition order unless a variance is provided in writing by the COR for unusual circumstances. Property to be destroyed includes items unlawful to sell and items which constitute a safety hazard to the public. When necessary, the Contractor shall request a waiver of the destruction timeframe via an e-mail submitted to the COR within two (2) business days of receipt of destruction disposition order. The Contractor shall verify the destruction and disposal of property by: (1) witnessing the destruction with a government representative; (2) documenting the destruction; and signing the disposition order or other agency order to destroy document.

The Government may choose to destroy or otherwise dispose of property through mechanisms separate from this contract; however, the Contractor shall coordinate the transfer of property to the seizing agent. The Contractor shall provide disposition of firearms as specified by the COR to include coordinating with vendors and the seizing agent and providing transportation to the disposition site.

C.5.7.2 Remittance

C.5.7.2.1 Develop Cost Estimates

Upon request of the COR, the Contractor shall submit an accurate Holding Cost Estimate (HCE) and a Government Overhead Cost Estimate (GOCE) within two (2) business days from receipt of request. The HCE is an estimate of direct Contractor costs and the GOCE is an estimate of all Government overhead costs. As part of the HCE, the Contractor shall provide information on its indirect costs by category (e.g., overhead and profit) so that the Government can allocate these costs. The Contractor shall provide the HCE electronically to the requesting COR using the format shown in Technical Exhibit 5. The HCE/GOCE shall be a valid estimate of costs through the next 30 calendar days, broken out and displayed in intervals as specified at the service request level. The GOCE and HCE will be combined and then added to the release documentation sent to the owner by the COR. The Contractor shall not change the cost estimates after submission.

C.5.7.2.2 Remit Property to Owners

The Contractor shall remit property to the party designated by the COR within eight (8) business hours of receipt of a disposition order. If items are not picked up by the designated party within that time period, the Contractor shall notify the COR for further instructions. The COR will provide follow-up disposition instructions and a request for a revised HCE/GOCE. The Contractor shall:

- (a) Prepare the property for release if needed or according to special instructions.
- (b) If requested by the COR in writing on a disposition order, collect all associated costs, including holding costs (Contractor's direct costs of transportation, storage, security, maintenance, and other miscellaneous charges attributable to a particular seizure), the Government-provided allocation of indirect costs, and the GOCE as calculated by the Contractor using a Government-furnished formula. The Contractor shall collect costs before property is released.
- (c) Verify identity of person receiving property as that on the disposition order, and have all persons sign access control log. Ensure that payments are accompanied by adequate identification, such as a valid driver's license or valid passport, and record the driver's license or passport number on the receipted copy of the disposition order and on the back of the monetary instrument provided. See Section C.5.8.4 for acceptable forms of payment and Section C.5.8.6 for requirements regarding the transfer of payments to the Government.
- (d) Obtain signature of recipient on the original chain of custody document and return the original chain of custody document to the COR.

C.5.7.3 Retention by Seizing Agency

As directed, the Contractor shall release property to the agency organization designated on the signed disposition order within the timeframe specified in the disposition order, which will generally be no less than eight (8) business hours from receipt of the disposition order. If items are not picked up within that time period, the Contractor shall notify the COR for further instructions. The

COR will provide follow-up disposition instructions. The Contractor shall obtain the signature of the official from the organization receiving the property on the disposition order. The Contractor shall return the original chain of custody document to the COR. For property retained by the seizing agency, the Contractor shall not collect the HCE and GOCE referenced above. The Contractor, on request, shall arrange for packing, crating, and shipment of property designated for official use. Transportation and packing costs shall be paid by the receiving organization, unless otherwise specified by the COR.

C.5.7.4 Transfer to Other Federal, State, Local or Foreign Agencies

The Contractor shall release property to agencies designated in writing by the COR within one (1) business day of receipt of the disposition order. If items are not picked up by the designated recipient within that time period, the Contractor shall notify the COR for further instructions. The COR will provide follow-up disposition instructions. If directed by the COR in writing on a disposition order, the Contractor shall collect from the recipient all associated costs, including holding costs (Contractor's direct costs of transportation, storage, security, maintenance, and other miscellaneous charges attributable to a particular seizure), the Government-provided allocation of indirect costs, and the GOCE as calculated by the Contractor using a Government-furnished formula before property is released.

C.5.7.5 Packing and Preparation for Transport to Disposition Locations

The Contractor shall pack and prepare seized and forfeited property for shipment to disposition locations in accordance with the COR's instructions. The Contractor will be furnished a copy of the disposition order which includes a list of the material and quantity to be packed, the location of the material, and the "deliver to" address of the final disposition end-point. The Contractor shall: pack, weigh, label, and stage property for shipment as specified by the COR; mark packages with weight, dimensions, and delivery address; prepare manifests identifying the property packed in each container; notify the COR when the property is packed, labeled, and ready for shipment; and affect the movement by carrier as approved by the COR.

C.5.7.6 Sales

The Contractor shall conduct sales as directed by disposition orders, to include specifications included on any court/interlocutory orders. Sales conducted by the Contractor will be supervised by designated custodians such as the USMS, and in all cases the Government will serve as the final authority regarding the sale of seized and forfeited property and the title transfers executed by the authorized Government official. Sales shall be conducted pursuant to all country-specific laws to the extent consistent with U.S. law. The Contractor shall use its ICMIS to accommodate the recording, accounting, and reporting of sales information, to include all payments from purchasers or other sources.

Employees of the Contractor, subcontractors/vendors, seizing agency, and their immediate families (parents, spouses, or children living in the same household), are ineligible to bid on or purchase directly or indirectly any property offered for sale.

C.5.7.6.1 Sales Methodologies

When and as required, the Contractor shall sell seized and forfeited property at public auction using competitive methods as specified on the disposition order. Public auctions can be opened to prospective bidders in locations outside the local sale site by means of telecommunications or audio/visual networks.

- (1) Quick Sale or Summary Sale. The Contractor shall conduct quick sales. A quick or summary sale is authorized in instances when it appears that property is perishable (such as fresh food) or will be greatly reduced in value if not sold, or if the expense of keeping it is disproportionate to its estimated value. The Contractor shall provide quick sale recommendations to the COR.
- (2) Interlocutory Sale. In some instances, the Contractor shall be required to sell seized property prior to forfeiture. This shall be accomplished by an Interlocutory Sale ordered by the court. The COR will provide the Contractor with a disposition order, along with a copy of the Interlocutory Sale order from the court. The Contractor shall transmit funds in accordance with Section C.5.8.6. The transmittal shall clearly identify the funds as an amount from an interlocutory sale to be deposited in the suspense account and shall include itemization of all costs related to the storage and disposition expenses.
- (3) Other Methodologies. The Contractor shall also sell seized and forfeited property according to the following methods as specified on the disposition order: oral progressive bid public auction, sealed bid auction, open bid sale (spot bid), negotiated sale, and online auction. Definitions for these sales methodologies are provided in Technical Exhibit 1.

C.5.7.6.2 Sale Planning and Scheduling

The Contractor shall maximize net revenue by evaluating the property for sale, identifying the actions needed to conduct a sale, conducting timely sales, effectively managing the cost of sales, and using other marketing techniques as needed and approved by the COR. Authorization to sell a specific item or lot may be withdrawn by the COR at any time prior to being sold. All sales shall comply with the Government's Terms and Conditions of Sale which will be provided by the COR.

- (1) Determination of Fair Market Value (FMV). FMV is defined as the value of property in a given market at which both buyers and sellers are willing to do business. Upon request of the COR, the Contractor shall establish an FMV for property at the time it is designated for sale and enter the data into the ICMIS. The Contractor shall use past sales experience, local merchants, trade catalogs and publications, manufacturers, third-party appraisers, or other persons with knowledge to establish the FMV. The Contractor shall provide a copy of the appraisal to the COR within five (5) business days of receipt of request.
- (2) Sales Plan. For each sale, the Contractor shall prepare a sales plan and schedule to ensure that all deadlines and tasks are completed. The Contractor shall provide this plan to the COR within five (5) business days of receipt of the disposition order.
- (3) Saleable Lots. The Contractor shall create saleable lots. Property from a single seizure may be broken into multiple lots; however, a lot shall not be comprised of property from more than one seizure.

C.5.7.6.3 Advertising

As specified on the disposition order, the Contractor shall publicly advertise the sale in order to generate competition.

C.5.7.6.4 Response to Inquiries

The Contractor shall respond to inquiries regarding advertised sales in an accurate and timely manner, including inquiries concerning the time, place, and nature of sales.

C.5.7.6.5 Sales Notices

The Contractor shall prepare and distribute sales notices and other sales-related materials for each sale as requested by the COR. "Terms and Conditions of Sale" will be provided to the Contractor by the COR. The Contractor shall print and distribute the Terms and Conditions of Sale with the other sales information. The Contractor shall make the Terms and Conditions of Sale available to the public at least two (2) full business days prior to the date of the public viewing for the sale.

The Contractor's sales notices shall contain necessary identifying information to minimize the incidence of refunds. The Contractor's sales notices, at a minimum, shall provide the location of the sale, the current address and telephone number of the viewing location, and contact information for inquiries.

C.5.7.6.6 Notification of Sale

The Contractor shall email a description of the property to be sold to the COR no later than two (2) business days prior to the sale date.

C.5.7.6.7 Inspection and Viewing of Items

The Contractor shall ensure that all prospective bidders are given the opportunity to view and inspect (when appropriate) all items designated for sale prior to the scheduled sale. If samples are used, the sample must be a fair representation of the overall content and condition of the property being offered for sale. The Contractor shall ensure the security of all items during the viewing.

C.5.7.6.8 Conduct of Sale

The Contractor shall conduct all sales in accordance with the Government-provided Terms and Conditions of Sale and as follows:

- (1) Withdrawal of Property. If requested by the COR, the Contractor shall withdraw any or all property prior to sale or impose certain restrictions.
- (2) Sealed Bids. If specified on the disposition order, to include specifications included on any court/interlocutory orders, the Contractor shall allow for sealed bids.
- (3) Recording of Sale. The Contractor shall maintain a record of all bids received.

- (4) **Minimum Bids.** When a minimum bid amount is designated by the COR on the disposition order, to include specifications included on any court/interlocutory order, the Contractor shall ensure that the item is not sold for less than that amount. The Contractor shall contact the COR for sales for which offers have been rejected due to not meeting the minimum bid.
- (5) **Acceptance or Rejection of Bids.** The Contractor shall accept or reject any bid as specified by the COR. In all cases, the Government will serve as the sole authority regarding the sale of seized and forfeited property.
- (6) **Refund Requests.** Refund requests by purchasers resulting from sales disputes will be approved by the COR and only in very unusual circumstances since the property is sold "as is" without any warranties. The Contractor shall review and summarize the facts and make a recommendation to the COR with respect to whether a refund is justified by the facts. The CO will make the final determination regarding the dispute.

C.5.7.6.9 Transfer of Items to Purchaser

The Contractor shall not release property to the purchaser until funds have cleared and constitute available funds to the Government. Upon receipt and clearance of the total amount of the purchase price, the Contractor shall provide to the purchaser a Notice of Award and receipt for each purchase. The Contractor shall prepare the appropriate transfer documents for all property sold to the public and forward the documents to the COR for approval within two (2) business days. These documents, issued to the purchaser at the time of sale, will enable the Contractor to transfer title/ownership of the property from the Government to a private entity. The transfer document is the applicable agency form used to transfer custody from the Contractor to the recipient.

C.5.7.6.10 Purchaser Default

The Contractor shall notify the COR within one (1) business hour, if property is not picked up within the timeframe specified by the terms and conditions of the sale or if certain conditions for release are not met. Purchaser default will be declared, and the bid deposit will be forfeited in such cases.

C.5.7.6.11 Notification of Sold Property

The Contractor shall submit the original executed disposition order and other sale or custody documentation to the COR within two (2) business days after the sold property has been transferred to the purchaser.

C.5.8 Accounting and Finance

The Contractor shall provide accounting and finance procedures and controls regarding receipt of funds; sales; non-sale dispositions; payments; transfers; and shortages/overages.

C.5.8.1 Accounting and Financing Standards

Other than as related to receipt of payment for work performed under this contract, the Contractor shall only receive funds and other types of payment from the authorized sources identified below:

- (1) Purchasers of property.
 - (2) Recipients of property remitted from the Contractor's custody.
 - (3) Recipients of transferred or released property upon fulfillment of other validated charges.
 - (4) Purchasers of by-products for recycling.
 - (5) Reimbursement directly related to adverse incidents (loss, damage, or destruction) of seized property in the Contractor's custody, or reimbursements directly relating to services performed for other Federal seizing agencies whenever such services have been approved by the CO.
- If the Contractor receives funds or any other type of payment from any source other than the above, the Contractor shall report the receipt of such funds to the COR no later than eight (8) business hours after receipt.

C.5.8.2 Accounting for Sales

For each sale, the Contractor shall maintain documentation of accounts receivable, the deposit of monies, and the processing of funds transactions, in a manner approved by the COR.

C.5.8.3 Accounting for Non-Sales Dispositions

The Contractor shall also maintain financial records for all property dispositions other than sales. These dispositions include: remittance; transfer to seizing agencies; transfer to federal, state, local or foreign governments; and destruction.

C.5.8.4 Accepting Payment

The Contractor shall only accept payment for sales in the form of bank-certified checks or cashier's checks made out to the Government or type of credit card approved by the Government. For non-sales payments (e.g., remittance charges), the Contractor shall only accept bank-certified checks or cashier's checks made out to the Government.

As specified by the COR, the Contractor shall make wire transfers directly to a government account or to the account of the Contractor for remittance to the Government. The wire must reference the sale number or designated reference number for non-sales payments.

C.5.8.5 Terms of Payment

The Contractor shall require deposits to be made according to the following schedule:

- (a) If total purchases are \$100,000 or less for the sale, payment in full is required the day of the sale.
- (b) If total purchases are greater than \$100,000 for the sale, a minimum deposit of \$100,000 is required on the day of the sale.
- (c) Full and final payment is due by Close of Business (COB) the next business day after the sale. The Contractor can extend collections to the second business day after the sale when deemed necessary.

C.5.8.6 Transfer of Funds to the Government Depository Account

The Contractor shall transfer all funds, including seized funds, in accordance with the Treasury Financial Manual to the Government Depository Account Agency Location Code (ALC) specified by the COR based on the type of revenue listed in the sections below. The Contractor shall notify the COR immediately upon identification of any unusual or special circumstances that may affect compliance with these procedures.

C.5.8.6.1 Sale Revenue

The Contractor shall transfer sale revenue to the ALC within five (5) business days after collection. All deposits and transfers shall be identified with sale number and agency.

The Contractor shall send a memorandum via fax or electronic means to the COR no later than five (5) business days from the final date of sale collection (e.g., last transfer date). The memorandum shall include the following information:

- (a) Contractor point-of-contact
- (b) Copy of Deposit Tickets, Standard Form (SF) 215
- (c) Transferred amounts itemized by class code, sale number, and reference number
The Contractor shall provide an explanation for any differences in the amounts.

C.5.8.6.2 Non-Sale Revenue

All funds collected by the Contractor shall be deposited or transferred to the ALC within three (3) hours after collection. All deposits and transfers shall identify the type of funds and agency.

C.5.8.6.3 Reporting Requirements

- (1) Revenue Detail Sale Report. The Contractor shall provide to the COR, via electronic means, a Revenue Detail Sale report no later than ten (10) business days after each sale.

- (2) Monthly Cash Transfer Report. By the tenth calendar day of each month, the Contractor shall provide to the COR, via electronic means, a monthly report with narrative detail and reconciliation of all sale and non-sale collections made during the prior month.
- (3) Year-End Bank Statements. The Contractor shall provide the COR with copies of monthly bank statements for the entire fiscal year from each bank that is used to deposit monies. The Contractor shall forward the statements to the COR annually by 20 October.
- (4) Final Revenue/Expense Sale Report. The Contractor shall submit a Final Revenue/Expense Sale Report to the COR no later than ten (10) business days after the end of each sale.

C.5.8.7 Shortages/Overages of Collections

The Contractor shall resolve all discrepancies regarding transferred and deposited funds within two (2) business days of discovery. The Contractor shall remit overages and make up for shortages of collected funds.

C.5.9 Program Reviews

By the end of the first 60 calendar days of the Transition/Phase-In Period, the Contractor shall submit a draft plan for conducting physical inventories to the CO/COR.

C.5.9.1 Annual Inspection and Audit

The Chief Financial Officers (CFO) Act of 1990 requires an audit of the Government's annual financial statements. As part of this audit, each storage facility operated under this contract is mandated to conduct a 100% annual reconciliation inventory ("100% Physical Inventory") of seized assets in the custody of the Contractor, including assets which may have become forfeited based on a disposition order, but which are still in the custody of the Contractor. The Contractor is only required to conduct inventories of Contractor-provided storage space.

The right of the Government's financial statement auditor to enter the Contractor, subcontractor, and vendor premises will be established by a letter from the CO, along with a notice of the annual reconciliation inventory of property.

The Contractor shall conduct the "100% Physical Inventory" including both the actual count and the verification. The Contractor shall correct and update in the ICMIS deficiencies identified by any audit findings within 15 calendar days or as approved by the COR. If it is not possible for the Contractor to rectify the discrepancy within 15 calendar days, the Contractor may request an additional 15 calendar days from the COR to complete this task.

C.5.9.2 Other Randomized Location Inventory

As directed by the DOJ CO, the Contractor shall conduct storage location inventories in addition to the annual inspection and audit (see C.5.9.1). The Contractor is only required to conduct inventories of Contractor-provided storage space. The Contractor shall generate a random sample listing of items to be located in the Contractor-provided warehouses and storage areas, and shall report the results of the inventories to the COR. The Contractor shall report all discrepancies found during inventories as Adverse Incidents to the COR within two (2) business days and investigate as such. The Contractor shall reconcile the ICMIS in coordination with the COR within five (5) business days after receipt of Government response to the discrepancy reports.

C.5.10 Call Receiving and Dispatch Operations

The Contractor shall provide "around the clock" (i.e. 24-7) work reception with a central telephone number and fax number by which the CO can request services on new or existing task orders. An answering service between 08:00 PM and 08:00 AM Eastern Standard Time and on weekends and holidays is acceptable if it is able to transfer calls to the Contractor's on-call dispatcher within five (5) minutes.

C.5.11 Conferences

The Contractor may be directed by the DOJ COR to participate in up to three (3) domestic or international asset recovery conferences per year. Contractor attendees shall not exceed three (3) per conference unless approved by the CO prior to the conference.

C.6 Performance and Quality

The Contractor shall accomplish work quickly, efficiently, and effectively. The Contractor shall perform to the standards specified in this SOW as follows:

C.6.1 Performance Standards

The Contractor shall ensure that all work meets the specifications defined in the Performance Requirements Summary (PRS) provided in Technical Exhibit 6 and as described herein. The Contractor's Project Manager (or alternate) shall personally contact the COR within two (2) business hours of events or occurrences within the scope of this SOW that negatively affect satisfactory performance of this SOW including any instructions about the performance of work that is not communicated through the COR. In addition, the Contractor shall follow up with a detailed written report within two (2) business days of the discovery of the events or occurrence.

C.6.2 Quality Control Plan

- (1) The Contractor shall be responsible for the quality of products and services provided under this SOW. The Contractor shall develop and implement a proactive Quality Control Plan (QCP) to include procedures that the Contractor will use to ensure that the services/products being provided are meeting the internal controls for quality, quantity, timeliness, responsiveness, customer satisfaction, and other requirements of the SOW.
- (2) The Contractor shall re-perform work that does not meet contract requirements, unless otherwise directed by the DOJ COR. Re-performance of work shall not constitute an excusable cause to miss any timeliness standards or deadlines. The Contractor shall absorb the cost of any required rework, and such rework shall not be charged back to the Government.
- (3) The Contractor shall maintain its QCP as submitted as part of its Technical Proposal. The Contractor shall submit any subsequently proposed changes to the QCP to the COR for review and approval before implementation of these changes occurs.

C.6.3 Quality Assurance

C.6.3.1 Inspections by the Government

The COR will inspect the Contractor's compliance with contract terms and conditions throughout the performance periods. Evaluation will be based on the Contractor's compliance with the requirements set forth in the PRS (Technical Exhibit 6). When applicable and on a case-specific basis, on-site Government quality assurance will be specified in the service request.

The Contractor shall participate in Government quality assurance by providing data and information as requested.

C.6.3.2 Contract Discrepancy Reports (CDR)

The Government will record oversight inspections and issue a Contract Discrepancy Report (CDR) when the Contractor's performance is unsatisfactory as defined by the PRS. The Contractor shall reply in writing to the COR within ten (10) business days from the date the CDR was received, giving the reasons for the unsatisfactory performance, corrective action(s) taken, and procedures to preclude recurrence.

C.6.3.3 Performance Evaluation Meetings

The Contractor's Project Manager (or alternate) shall meet with the COR and other applicable Government personnel to review contract performance as requested. These meetings may be conducted via conference call or in person. Performance evaluation meeting topics shall include, but are not limited to, review and analyses of key performance indicators, analyses of process or internal control deficiencies, problem discussion and resolution, reinforcement of quality and timely performance of contract requirements, accountability reporting, and invoicing issues. At these meetings, the Government and the Contractor will discuss the Contractor's performance as viewed by the Government and any problems being experienced. The Contractor shall take appropriate actions to resolve outstanding issues.

The Contractor shall take minutes during performance evaluation meetings which highlight the topics of discussion and shall provide an electronic copy to the COR upon request -. The COR reserves the right to approve the minutes.

C.6.4 Adverse Incidents

Mandatory procedures for handling adverse incidents are provided in Technical Exhibit 3. Adverse incidents include, but are not limited to, damage or loss of property, unauthorized access, and loss or theft of keys.

The Contractor shall be liable for and will not be reimbursed for costs associated with the loss, damage, theft, or improper destruction of seized and forfeited property within the care, custody, or control of the Contractor.

C.6.4.1 Adverse Incident Report

The Contractor shall inform the COR, by electronic means, of the occasion and extent of any loss, destruction, and/or damage of property or unauthorized entry, regardless of value, by COB the following business day after the adverse incident is identified. The adverse incident report shall contain, at a minimum, the following:

1. Case number/sequence number.

2. Asset Identification Number (AIN).
3. Container number (for property in administrative custody).
4. Description of the property.
5. Type of incident (e.g., loss, damage, or destruction of property or injury).
6. Location of incident.
7. Date and time of incident
8. Date and time incident discovered.
9. The Appraised Value (APV) and the Fair Market Value (FMV) of the loss if applicable.
10. The probable cause of the incident.
11. Names of any witnesses.

C.6.4.2 Adverse Incident Final Report

The Contractor shall submit a written final report of investigation to the COR within 30 calendar days of the incident. If a final report of investigation cannot be completed within 30 calendar days, an interim report shall be submitted in place of the final report. The final report shall contain:

1. Case number/sequence number.
2. Asset Identification Number (AIN).
3. Container number (for property in administrative custody).
4. Physical or legal description of the property.
5. A narrative of the incident.
6. Contractor findings.
7. The value of the loss from the Government-provided APV figure.
8. Contractor conclusions.
9. Collection procedure for the resolution of the incident (i.e., insurance claim, invoice adjustment, vendor payment, and the current status of the claim).
10. Supporting documentation to include police report, witness statement(s), photograph(s), and any other relevant documentation from the Government and the Contractor.
11. Recommendation and/or actions taken on how to preclude recurrence of the incident, as appropriate.

C.7 Government-Furnished Property and Services

C.7.1 General

Generally, no Government-furnished facilities, property, equipment, materials, and supplies will be provided under the contract. Seized and forfeited property items are not considered Government-furnished property.

C.7.2 Government-Furnished Information

It is anticipated that Government-furnished information will be required for contractor performance. Any Government-furnished information required for successful completion of a service request will be available through the COR.

C.7.3 Access to Government Facilities

Should access to U.S. Government facilities be required under a service request, DOJ will work closely with the Contractor and appropriate DOJ/Treasury/DHS officials, the International Unit, OIA, Department of State, and the Embassy to include the appropriate legal attaché to ensure all necessary inter- and intra-agency coordination is accomplished.

C.8 Contractor-Furnished Property and Services

C.8.1 General

The Contractor shall furnish all facilities, property, equipment, materials, supplies, and services necessary to perform this contract that are not specifically identified as Government-furnished elsewhere in this contract. Such property includes, but is not limited to, furnishings, supplies, tools, vehicles, office automation equipment (to include computers and peripherals), and telecommunication instruments. The Government will not take responsibility for any Contractor-Furnished Property.

C.8.2 Inventory Control and Management Information System (ICMIS)

1. The Contractor shall furnish, operate, and maintain an ICMIS for tracking the seized property consigned to its facilities for storage. The Government assumes the ICMIS is part of the Contractor's existing infrastructure and as such does not intend to fund the cost of developing the system. The ICMIS shall be satisfactory to the Government's requirements and capable of tracking, at a minimum, the following:
 - Seizing agency (e.g., DOJ, Treasury or DHS)
 - Case number/sequence number (provided by Government)

AIN (provided by Government)

Container number (for property in administrative custody)

Description of property

Location of all seized property items by facility address, building identifier, internal location (i.e., rack and shelf identifier, floor space identifier, or cage/climate-controlled storage unit identifier)

Pallet equivalent count

Date of arrival

Date of release for disposition

Value of property (if provided by Government)

Income from sales or recovery of holding costs

2. Using ICMIS, the Contractor shall track direct costs to the AIN and case number/sequence number. Direct costs include all costs which can be directly related to a particular seizure (e.g., AIN and case number/sequence number). All other costs are considered indirect and shall be provided monthly on invoices at an aggregate level but not allocated across seizures
3. The system shall provide all information necessary to meet audit requirements, shall comply with cost accounting standards, and shall be used to record and report all aspects of property management and sales information. The system shall be capable of generating an export file in Microsoft Excel.
4. The Contractor shall ensure continuity of services during system unavailability. The Contractor shall input manually processed transactions upon availability of the system.
5. Finally, the system shall meet any Government-required data and system security requirements.

C.8.3 Contractor-Furnished Equipment

The Contractor shall furnish equipment necessary to perform the requirements of this contract. Equipment condition shall not relieve the Contractor of any responsibility to provide services as required in this contract. Equipment acquired by the Contractor, at Contractor cost, shall remain the property of the Contractor at the expiration or termination of this contract, or as otherwise specified in the contract.

C.8.4 Contractor-Furnished Supplies and Materials

The Contractor shall furnish all supplies and materials necessary to meet the requirements of the contract. This shall include supplies and materials required to accept and store seized property and to ensure safe and secure transport. Any failure on the part of the Contractor to provide sufficient quantities and quality of supplies and materials shall not be cause for reduction in any service or performance.

C.8.5 Contractor-Furnished Facilities

The Contractor shall provide sufficient secured workspace and storage space in facilities to meet the workload and performance standards in this contract. Contractor- Furnished Facilities (CFFs) shall be in compliance with local zoning codes and in compliance with all applicable federal, state, local and foreign environmental, fire, and life safety codes and regulations. Storage areas shall be maintained in a safe, pest-free, and clean manner. Storage areas shall be subject to approval of the Government.

The minimum requirements for CFF are:

Segregable space to prevent comingling of seized and forfeited property from other stored property.

Acceptable facility security including, but not limited to, chain-link gated perimeter fencing at least ten (10) feet high with barrier at top to inhibit breaches, adequate access point alarm systems for facility security, and building access control mechanisms in addition to commercial grade window and exterior entry/garage door locks.

C.8.5.1 Storage for Climate-Controlled Seized Property

As required, the Contractor shall furnish facilities with the capabilities to safely and securely store seized and forfeited property requiring climate-controlled storage (e.g., food products, cigars, cigarettes, wine, and beer).

C.8.5.2 Storage Containers for Property in Administrative Custody

As required, the Contractor shall provide required storage space (sealed, locked containers) for storage of seized and forfeited property by seizing agents. In these cases, the seizing agent will retain the key to the container and the Contractor shall maintain administrative custody only.

C.9 Records and Document Management

The Contractor shall maintain records as described herein.

C.9.1 Document Management

The Contractor shall maintain copies of all executed forms (e.g., consignment orders and disposition orders) in such a manner as to permit easy retrieval when requested by Government auditors, the COR, or the CO.

The Contractor shall provide electronic, readable copies of executed forms to the COR within the timeframes specified throughout the SOW and submit hard copies with original signatures within an additional five (5) business days or as otherwise specified herein. The Contractor shall identify the mechanism for the electronic submittal in its Proposal.

C.9.2 Access to Records

Upon request of the COR, the Contractor shall provide to the COR, or any other designated Government representative, access to the records required to be maintained under this contract. Access shall be provided within one (1) business day of request. As necessary, such access shall be at the Contractor's work site or by delivery of the requested materials to the COR or other designated Government representative. Such access shall include the right to examine and copy documents as deemed necessary by the COR. When feasible, the Contractor should consider web-hosted access to records.

C.9.3 Recordkeeping

1. The Contractor shall maintain and store, in an indexed and readily retrievable form, the records and documentation for a period of five (5) years following the completion of the service request.
2. After the five-year retention period expires, the Contractor shall, at the request of the COR, forward the records to the COR.

C.10 Deliverables

C.10.1 Status Report

The Contractor shall submit a written status report to the COR as requested.

C.10.2 Management Report

As requested, the Contractor shall submit a management report summarizing significant information and events that impact the operation and cost of the contract. The summary shall include, but not be limited to, any significant information that impacts the Contractor's performance of contract requirements and/or contract costs and any property received which has storage costs of over \$25,000 per month. The Contractor shall submit the Management Report to the COR.

C.10.3 Monthly Workload Reports

The Contractor shall maintain monthly workload counts. Upon request the Contractor shall submit counts to the COR in a Government-approved format using Microsoft Excel. On a quarterly and annual basis, the Contractor shall provide a roll-up report consolidating the data from the monthly reports.

Workload reporting shall be consistent and accurate, with inventory data maintained in a manner that permits reporting at the individual site level and by AIN and case number/sequence number.

Monthly reports shall be submitted on or before the tenth business day of the following month. Quarterly reports shall be submitted on or before the tenth business day following the end of the quarter. Annual reports shall be submitted on or before the tenth business day following the end of the fiscal year.

C.10.4 Organizational Contacts

The Contractor shall submit, to the COR, an organizational chart as well as a list of the names, work addresses, and telephone numbers of the supervisory and management personnel with authority to represent the Contractor before the Government in all matters arise under this contract. The list shall also identify the key personnel responsible for performing the requirements contained herein. The Contractor shall keep the list current and shall notify the COR in writing within seven (7) calendar days when changes are made.

C.10.5 Factors Affecting Performance Report

As detailed in Section C.6.1, the Contractor's Project Manager (or alternate) shall personally contact the COR within two (2) business hours of events or occurrences within the scope of this contract that negatively affect satisfactory performance of this contract including any instructions about the performance of work that is not communicated through the COR. In addition, the Contractor shall follow up with a detailed written report within two (2) business days of the discovery of the events or occurrence.

C.10.6 Ad Hoc Reports

The Contractor shall prepare management and operational reports on an ad hoc basis as directed by the DOJ COR for the purposes of gaining insight to specific asset recovery program needs and any matter related to Contractor performance including fund distribution and administrative matters. Specific report formats; content, frequency, delivery methods, and submission dates shall be coordinated with and approved by the COR on an individual report basis.

C.10.7 Performance Evaluation Meeting Minutes

As required in Section C.6.3.3.

C.10.8 Management Recommendations and User Needs Analysis

On a quarterly basis, or as directed by the DOJ COR, the Contractor shall provide input and recommendations for strategic planning, goal setting, tracking, reporting, user needs analysis, usage studies, and feedback tracking. The Contractor shall keep abreast of new methodologies and services in the supply, warehousing, and transportation fields by monitoring appropriate print and electronic resources and Agency initiatives. Quarterly input and recommendations shall be provided by the tenth business day following the end of the quarter. Timelines for ad hoc input will be determined on an individual basis.

C.10.9 “What If” Analysis

The Contractor shall respond to requests for “what if” analyses should contract funding be reduced during a performance period due to Departmental re-programming or other Congressional or Executive Office budget exercises. The Contractor shall prepare a proposed de-scoping of work for the remainder of the contract period (or subset thereof as directed) based on a percentage or dollar reduction figure provided by the COR for analytic purposes. The “what if” cost analysis shall be provided in a format specified by the COR, be based on actual current-year pricing at the time and provide an analysis of what services can be provided under the more restricted funding scenario.

C.10.10 Location Information

The Contractor shall maintain an up-to-date and accurate listing of the location of all consigned property, as well as an up-to-date listing of each storage facility’s point of contract (POC), their primary and emergency contact information, and the physical address of the facility.

C.10.11 Adverse Incident Reports

As required in Section C.6.4.1.

C.10.12 Final Adverse Incident Reports

As required in Section C.6.4.2.

C.11 Publications and Forms

1. Publications and forms referenced in this SOW are listed in Technical Exhibit 8. The Contractor shall comply with these publications and use these forms as specified in the SOW. All hard copy publications and forms listed will be provided by the Government at time of award, unless they are publicly available so the Contractor can obtain them itself. Online documents are available via the referenced Internet link. The Contractor shall establish and update, as required, a file of all required publications listed in this section as well those cited throughout the SOW. Supplements or amendments to listed publications may be issued during the life of the contract.
2. The Contractor, in partnership with the Government, shall ensure that all publications are up-to-date. Upon completion of the contract, the Contractor shall return all issued hard copy publications to the Government.
3. The Contractor shall ensure that all information obtained through electronic means is current. The Government will not be responsible for information that it cannot control, including that contained on websites outside of its portals.

TECHNICAL EXHIBIT 1

ACRONYMS AND DEFINITIONS

ACRONYMS

Acronyms included in the table below are those stated throughout the SOW and do not necessarily reflect all acronyms related to DOJ asset recovery.

Acronym	Complete Name
AFF	Assets Forfeiture Fund
AIN	Asset Identification Number
ALC	Agency Location Code
APV	Appraised Value
AQL	Acceptable Quality Level
ATF	Bureau of Alcohol, Tobacco, Firearms & Explosives
CATS	Consolidated Asset Tracking System
CBP	US Customs and Border Protection
CDR	Contract Discrepancy Report
CFF	Contractor-Furnished Facilities
CFO	Chief Financial Officers
CFR	Code of Federal Regulations
CLIN	Contract Line Item Number
CO	Contracting Officer
COB	Close of Business
COR	Contracting Officer Representative
CSA	Controlled Substances Act
DCIS	Defense Criminal Investigative Services
DEA	Drug Enforcement Administration
DGO	Designated Government Official
DHS	Department of Homeland Security
DOJ	Department of Justice
FAR	Federal Acquisition Regulation
FBI	Federal Bureau of Investigation
FDA	Food and Drug Administration
FMV	Fair Market Value
GAO	Government Accountability Office
GOCE	Government Overhead Cost Estimate
HCE	Holding Cost Estimate
ICE	US Immigration and Customs Enforcement
ICMIS	Inventory Control and Management Information System
IDIQ	Indefinite Delivery/Indefinite Quantity
IPA	Independent Private Audit
IRS-CI	Internal Revenue Service Criminal Investigations Division
IU	International Unit
MLARS	Money Laundering and Asset Recovery Section
MLAT	Mutual Legal Assistance Treaty
OIA	Office of International Affairs

Acronym	Complete Name
OIG	Office of the Inspector General
OMB	Office of Management and Budget
PL	Public Law
POC	Point of Contact
PRS	Performance Requirements Summary
QCP	Quality Control Program
RFP	Request for Proposals
RICO	Racketeer Influenced and Corrupt Organizations
SF	Standard Form
SOW	Statement of Work
TEOAF	Treasury Executive Office for Asset Forfeiture
TFF	Treasury Forfeiture Fund
TFM	Treasury Financial Manual
US	United States
USAO	United States Attorney's Office
USC	United States Code
USDA	United States Department of Agriculture
USMS	United States Marshals Service
USPIS	United States Postal Inspection Service
USSS	United States Secret Service

DEFINITIONS

Definitions listed below are for terminology used throughout the SOW, and do not necessarily reflect all terms related to DOJ asset recovery.

Term	Definition
Acceptable Quality Level (AQL)	Represents the minimum allowable percentage of outputs meeting the performance standards for purposes of a quality assurance inspection.
Administrative Custody	A seizure where custody is retained by the seizing agency, but the Contractor is required to accept, transport, and store the property.
Adverse Incident	Any loss, damage, or destruction of seized or forfeited property or any other property or facility or associated third party property and bodily injury or death arising out of any phase of contract performance.
Appraised Value (APV) (Seized Property)	Value established by the seizing agency.
Assets Forfeiture Fund (AFF)	The AFF was established to receive the proceeds of forfeiture and to pay the costs associated with such forfeitures, including the costs of managing and disposing of property, satisfying valid liens, mortgages, and other innocent owner claims, and costs associated with accomplishing the legal forfeiture of the property.
Asset Identification Number (AIN)	The unique identifier for individual items of seized and forfeited property.
Auction	A public sale of property to the highest bidder.

Term	Definition
Audit	An examination of data and records in accordance with Generally Accepted Government Auditing Standards and Office of Management and Budget (OMB) bulletins, as applicable, which is conducted by the Office of Inspector General (OIG) or OIG contracted-for Independent Private Audit (IPA) firm or the Government Accountability Office (GAO).
Business Day	Throughout this document, business day is defined as Monday through Friday, except Federal holidays.
Business Hours	8:00AM – 8:00PM for business operations defined in the SOW.
Case Number	The unique identifier which associates various Asset Identification Numbers (AINs) associated with a particular law enforcement action involving seized property.
Consolidated Asset Tracking System (CATS)	The official system for DOJ seized and forfeited property.
Chief Financial Officers (CFO) Act of 1990	Instituted by Public Law (PL) 101-576-November 15, 1990. The Act calls for more effective general and financial management practices for the Federal Government through statutory provisions and systems.
Close of Business (COB)	5:00 PM/17:00 Eastern Time.
Consignment	Seized property which has been removed from the possession of the violator and turned over to either the Contractor or the seizing agency for care and custody.
Contract	A mutually binding legal relationship obligating the seller to furnish the supplies or services (including construction) and the buyer to pay for them. It includes all types of commitments that obligate the Government to an expenditure of funds and that, except as otherwise authorized, are in writing. In addition to bilateral instruments, contracts include awards and notices of awards; job orders or task letters issued under basic ordering agreements; let contracts; orders, such as purchase orders, under which the contract becomes effective by written acceptance or performance; and bilateral modifications. Contracts do not include grants and cooperative agreements covered by 31 United States Code (USC) 6301 et seq. A contract may be initiated through use of a contract award, letter of obligation, or a fee-for-service agreement.
Contract Discrepancy Report (CDR)	A formal, written documentation of Contractor nonconformance or lack of performance for contracted work. The CDR is initiated by the Contracting Officer (CO), or an authorized representative, whenever the performance as determined by the CO is unsatisfactory. The Contractor completes and returns the report to the CO.
Contracting Officer (CO)	An agent of the Government with the authority to enter into, administer, and terminate contracts and make related determinations and findings. Only the CO can enter into a contract and modification agreement binding on the Government.
Contracting Officer's Representative (COR)	An agent of the Government responsible for day-to-day management of the Contract.
Contractor	The term “Contractor” includes the prime contractor, subcontractors, vendors, mentors, joint-ventures, consultants, or any others acting in a similar capacity working on this Contract.

Term	Definition
Contractor Costs	The total of all contractor costs associated with a case number. This includes the seizure holding costs plus a proportionate share of the Contractor's overhead and profit.
Contractor Staff	The term “Contractor staff” as used herein refers to both employees of the prime contractor and any subcontractors. Subcontractors shall comply with the provisions of the Contract.
Data	All recorded non-technical information (e.g., administrative, financial, management, cost, and pricing) and all recorded technical information (e.g., formulas, statistics, measurements, and evaluations) regardless of the form (e.g., records, reports, files, documents, correspondence, drawings, graphs, software, and other forms of documentation) or the media (e.g., paper, computer disks, audio/video disks, memory sticks, flash drives, CD-ROMs, DVDs, tapes, microfiche, online backup storage, and other media) on which it may be recorded.
Designated Government Official (DGO)	An agent of the Government who will provide contract oversight and authorize work. The DGO may be the COR, a technical expert, or the Government representative for a specific case.
Disposition	Designation of an action by the seizing agency via disposition order for seized and forfeited property in the custody of the seizing agency or the Contractor. Disposition orders are issued for viewing, inspecting, sampling, sale, destruction, remittance, manipulation, transfer, donation, etc.
Fair Market Value (FMV)	The current value of property in a given market at which both buyers and sellers are willing to do business.
Forfeiture	Administrative or judicial process by which the title to property passes to the Government.
Government Accountability Office (GAO)	The GAO was established by congressional action in 1921. Its purpose then and now is to provide Congress with an ongoing source of objective assessments with respect to the efficacy of federally funded programs.
Government Overhead Cost Estimate (GOCE)	This allocation is meant to reimburse, on a pro rata share, the forfeiture fund for all of the additional overhead expenses incurred over and above those of the vendor or subcontractor.
Holding Costs	All costs incurred in the receipt, transportation, storage, maintenance, repair, appraisal, sale, or other disposition of seized property.
Interlocutory Sale	Sale of property before issuance of the final order of forfeiture. The original property may be sold and the proceeds of that sale treated as substitute property where the originally seized property is liable to perish, waste, or greatly depreciate in value during the pendency of the forfeiture proceeding, or if the expenses of keeping it are excessive. In a judicial forfeiture, the sale is conducted pursuant to a court order.
Judicial Forfeiture	The perfecting of title of seized property to the Government by court decree. All seizures can be elevated to the judicial process by the owner posting bond.
Minimum Bid	The lowest acceptable price at which the seller agrees to complete the sale.
Negotiated Sale	It is primarily used to sell material with unique or special value, characteristics, conditions, or circumstances. It is also used to sell material previously offered but not sold at two public auctions. Used infrequently since it does not promote open competition.

Term	Definition
Office of Inspector General (OIG)	The primary mission of the OIG is to conduct and supervise audits and to conduct investigations relating to programs and operations of the DOJ. These audits and inspections include the seized property program and the Contractor's operations and facilities.
Online Auction	Forfeited property is advertised online in a "GovSales.gov" style of presentation.
Open Bid Sale	A form of sealed bid sale characterized by public posting of a bid register allowing bidders to record their own bids and see those of contending bidders. It is used for timely sale of isolated material, e.g., items whose quantity, location, or APV do not merit relocation; sale by oral auction; or a delay until the next auction. Also referred to as Spot Bid.
Oral Progressive Bid Public Auction	The preferred and primary auction method, which is conducted utilizing open, verbal, and progressive bidding.
Oversight	A Government management review of the activities of the Contractor as required by the Contract.
Performance Requirements Summary (PRS)	A summary chart that identifies the required services of the Contract that will be evaluated by the Government to ensure that the Contractor meets Contract performance standards.
Performance Standard	The results-oriented measure that describes the level of performance expected for a particular job element. It prescribes what the Contractor is expected to produce in such dimensions as quality and timeliness.
Physical Inventory	The process of listing all items in a specified location after physically determining items on hand. Physical inventories do not include the examination of the Contractor's or subcontractor's records, invoices, or books except to the extent necessary to verify the inventory.
Quality Assurance	The functions and associated actions performed by the Government to ensure that contract requirements are performed in accordance with specified standards, and that an appropriate level of Contractor quality control activities is in place and operational.
Quality Control	The Contractor's internal management functions that include, but are not limited to, training, documented procedures, inspections, and tests (taken at the point of performance) necessary to ensure that Contractor products and services conform to requirements, specifications, and standards.
Quality Control Program (QCP)	The Contractor's system to control services so that they meet the requirements of the Contract.
Quick Sale	The decision to promptly sell forfeited property as specified by the seizing agency.
Sale Number	A Contractor-generated number that uniquely identifies each auction sale.
Scrap	Property which has no value except for its basic material content.
Scrap By-Product	The shredded, crushed, ground, or otherwise disassembled remains of seized and forfeited property that have been destroyed (i.e., rendered useless for their original purpose). Scrap by-product may in fact be used or sold as recycled material, when such re-use or re-sale is approved in advance by the COR.
Sealed Bid Auction	An auction whereby the bidders submit their bids in writing by a certain date. Normally all the bids are opened at the same time with the highest bidder obtaining the property. Bids are kept secret; therefore, other bidders must wait until the bids are opened to find out what their competitors offered. Typically used for timely selling of isolated material, selected expensive items, and some material in commercial quantities.

Term	Definition
Sealed Container or Package	A seized container or package that has been sealed with a serially-numbered metal seal, evidence tape, or tamper-resistant storage bag with a serial number, to prohibit access to the contents of the container or package by anyone other than a seizing agency official. Authority to break the seal must be obtained from the seizing agency or witnessed by a seizing agency official except property ordered to be sold by seizing agency's disposition order.
Seized Property	Property that is seized by an agency as a result of an act in violation of law. Under the laws administered by DOJ, title to the property vests in the Government at the time of violation. Such property is "government property" as that term is defined in Federal Acquisition Regulation (FAR) 45.101, only for the purposes of determining contractor liability to the government for loss or damage to seized property under the terms of the contract and FAR 52.245-1.
Seizure	The lawful act by an authorized officer of taking custody and control of property when there is reasonable cause to believe that a law which provides for seizure and forfeiture of the property has been violated.
Sequence Number	An identifier given to an item of property separately identifiable as an independent entity from others in a seizure. For example, if alcohol and tobacco were both seized in the same seizure case, the seizure would have one case number and two sequence numbers associated with that case number. The same sequence numbers as initially assigned will continue to be maintained for all subsequent custodial and financial transactions.
Shall	Indicates a mandatory, contractual requirement on the Contract. Whenever the word "shall" is used, the term "the Contractor" is understood, whether or not explicitly stated. (Used in phrases such as "shall perform" and "shall submit.")
Statement of Work (SOW)	The part of a Federal contract which clearly and completely describes the Contractor's work requirements.
Technical Exhibit	Provides supplementary information with representative workload and can be in the form of text, tables, graphs, or maps.
Transition	The transfer of the custody, management, and disposition of seized and forfeited property from one contractor to the next.
Treasury Forfeiture Fund	The Treasury Executive Office for Asset Forfeiture (TEOAF) administers the Treasury Forfeiture Fund (TFF). The TFF is the receipt account for deposit of non-tax forfeitures made pursuant to laws enforced or administered by it participating Treasury and DHS agencies.
Validated Customer Complaint	The Government will validate complaints submitted by customers to verify whether or not performance standards were met.
Will	Indicates the intent of the Government to perform an action. Whenever the word "will" is used, the term "the Government" is understood, whether or not explicitly stated. (Used in phrases such as "will provide" and "will be provided.")

TECHNICAL EXHIBIT 2

CURRENT ASSETS FORFEITURE FUND AND TREASURY FORFEITURE FUND PARTICIPANTS

Assets Forfeiture Fund Participants

The Assets Forfeiture Fund (AFF) was established to receive the proceeds of forfeiture and to pay the costs associated with such forfeitures, including the costs of managing and disposing of property, satisfying valid liens, mortgages, and other innocent owner claims, and costs associated with accomplishing the legal forfeiture of the property. The following is a list of the current participants in the AFF:

DOJ Components

- **DOJ Bureau of Alcohol, Tobacco, Firearms & Explosives:** Enforces the federal laws and regulations relating to alcohol, tobacco, firearms, explosives, and arson by working directly and in cooperation with other federal, state, and local law enforcement agencies. ATF has the authority to seize and forfeit firearms, ammunition, explosives, alcohol, tobacco, currency, conveyances, and certain real property involved in violation of law.
- **DOJ Drug Enforcement Administration:** Enforces the controlled substances laws and regulations of the United States and recommends and supports non-enforcement programs aimed at reducing the availability of illicit controlled substances on the domestic and international markets. DEA is responsible for investigations, seizures, and administrative forfeiture processing and has secondary responsibility for property management and disposition.
- **DOJ Federal Bureau of Investigation:** Investigates a broad range of criminal violations, integrating the use of asset forfeiture into its overall strategy to eliminate targeted criminal enterprises. The FBI has successfully used asset forfeiture in White Collar Crime, Organized Crime, Drug, Violent Crime, and Terrorism investigations. The FBI is responsible for investigations, seizures, and administrative forfeiture processing and has secondary responsibility for property management and disposition.
- **DOJ US Attorney's Office (USAO):** The USAO is responsible for the prosecution of both criminal and civil actions against property used or acquired during illegal activity. Each of the 94 offices handles civil and criminal forfeiture cases.
- **DOJ US Marshals Service (USMS):** USMS is the primary custodian of seized property for the DOJ Asset Forfeiture Program. USMS manages and disposes of the majority of the property seized for forfeiture.
- **DOJ Asset Forfeiture and Money Laundering Section (AFMLS), Criminal Division:** AFMLS holds the responsibility for coordination, direction, and general oversight of the DOJ Asset Forfeiture Program. AFMLS handles civil and criminal litigation, provides legal support to the US Attorneys' Offices, establishes policy and procedure, coordinates multi-district asset seizures, administers equitable sharing of

assets, acts on petitions for remission, coordinates international forfeiture and sharing, and develops training seminars for all levels of government.

Components Outside DOJ

- Other DOJ Asset Forfeiture Participants: There are several organizations outside the DOJ who participate in the DOJ Asset Forfeiture Program. This list may change as additional agencies and offices become part of the DOJ program. These agencies currently participate and may require support by the range of services covered by resulting contract(s). The magnitude and emphasis of each action will vary among the agencies/components.
 - United States Postal Inspection Service (USPIS): USPIS makes seizures under their authority to discourage profit-motivated crimes such as mail fraud, money laundering, and drug trafficking using the mail.
 - Food and Drug Administration (FDA): FDA's Office of Criminal Investigations has made seizures involving health care fraud schemes, counterfeit pharmaceuticals, illegal distribution of adulterated foods, and product tampering.
 - United States Department of Agriculture (USDA), Office of the Inspector General (OIG): USDA OIG's mission is to promote effectiveness and integrity in the delivery of USDA agricultural programs. Forfeiture is integrated as an important law enforcement tool in combating criminal activity affecting USDA programs.
 - Department of State, Bureau of Diplomatic Security: The Bureau of Diplomatic Security investigates passport and visa fraud and integrates asset forfeiture into the strategy to target the profits made by vendors who provide fraudulent documentation or others who utilize fraudulent visas and/or passports to further their criminal enterprises.

Treasury Forfeiture Fund Participants

The Treasury Executive Office for Asset Forfeiture (TEOAF) administers the Treasury Forfeiture Fund (TFF). The TFF is the receipt account for deposit of non-tax forfeitures made pursuant to laws enforced or administered by participating Treasury and DHS agencies. The following is a list of the current participating agencies in the TFF:

- Treasury Forfeiture Fund Participants: The Treasury Executive Office for Asset Forfeiture (TEOAF) administers the Treasury Forfeiture Fund (TFF). The TFF is the receipt account for deposit of non-tax forfeitures made pursuant to laws enforced or administered by participating Treasury and DHS agencies. The TFF participating agencies are:
 - [Internal Revenue Service Criminal Investigations Division \(IRS-CI\)](#), US Department of the Treasury;
 - [US Immigration and Customs Enforcement \(ICE\)](#), Department of Homeland Security;
 - [US Customs and Border Protection \(CBP\)](#), Department of Homeland Security;
 - [US Secret Service \(USSS\)](#), Department of Homeland Security;
 - [US Coast Guard](#), Department of Homeland Security.

TECHNICAL EXHIBIT 3

MANDATORY PROCEDURES FOR HANDLING ADVERSE INCIDENTS

- 1) Scope: A separate adverse incident report must be generated for each individual case number impacted by the incident. Each adverse incident report must be tracked and closed out separately.

- 2) Action to be taken by the Contractor:
 - a) Reportable Incidents - Shall include, but are not limited to:
 - i) Compromised containers
 - ii) Missing property
 - iii) Damaged property
 - iv) Suspected stolen property
 - v) Suspected improper or illegal bidder activity
 - vi) Suspected improper or illegal sales activity
 - vii) Suspected improper or illegal sub-contractor activity
 - viii) Compromise of facility security, e.g., unauthorized access and lost/theft of keys

 - b) Report timeliness – As stated in Section C.6.4.1 of the SOW, initial notification of an adverse incident shall be provided to the CO/COR, by electronic means, by close of the following business day after the adverse incident is identified. This communication will be made via email.

 - c) Initial notification content – As specified in Section C.6.4.1 of the SOW, the Contractor shall provide the following information to the CO/COR in its adverse incident report:
 - Case number/sequence number.
 - Asset Identification Number
 - Container number (for property in administrative custody).
 - Description of the property.
 - Type of incident (e.g., loss, damage, or destruction of property or injury).
 - Location of the incident.
 - Date and time of incident.
 - Date and time incident discovered.
 - The Appraised Value (APV) and the Fair Market Value (FMV) of the loss if applicable.
 - The probable cause of the incident.
 - Names of any witnesses.

 - d) Lockdown procedures:
 - i) Any decision to suspend a transaction that is the subject of an allegation will be made by the CO/COR.

 - e) Contact with, or response to, a party making an allegation:
 - i) Upon receipt of an allegation from a person who is not an employee of the Contractor or one of its sub-contractors, the Contractor:
 - (1) shall advise the reporting party that the information will be provided to the CO/COR by close of the following business day.
 - (2) shall advise the reporting party that any future communication regarding the incident will be with the CO/COR or designated representative.

- (3) shall not provide the reporting party with any opinion regarding the allegation made, or any assessment of the information provided.
 - (4) shall not provide notice to the seizing agency. This notification, if appropriate, will be made by the CO/COR.
- f) When any incident involves compromised, missing, or damaged property, or compromise of facility security, the Contractor shall make all necessary and appropriate inquiries, and provide a final report to the COR.
- 3) Action to be taken by the CO/COR:
 - a) Within 24 hours of an initial report of an allegation made by a non-employee, the CO/COR will:
 - i) Contact the Contractor's management at Headquarters and provide the name of the Government employee/representative that has been assigned to review the incident.
 - ii) Notify the seizing agency, as the situation dictates.
 - iii) Provide the Contractor with interim direction regarding any related pending transaction.
 - b) Within 48 hours of receipt of the information, the CO/COR will contact Contractor's management, who will provide the employee/representative with all related information/documentation.
 - c) Within 48 hours of receipt of the information, the CO/COR will, if necessary, contact the Contractor's management to obtain any relevant information available from that source.
 - d) Within three (3) business days of receipt of the information, the CO/COR will provide a summary report to DOJ management. The report will contain the following information:
 - i) A summary of the incident/allegation.
 - ii) Identification of all property involved.
 - iii) The names of all individuals contacted and the method of contact for each.
 - iv) The substance of the information received from each individual.
 - v) The nature and extent of any related site visits.
 - vi) A recommended course of action, which will be one or more of the following:
 - (1) Report the incident to the Agency OIG.
 - (2) Implement corrective action aimed at preventing similar incidents in the future.
 - (3) Close the incident to file without action.
 - e) If circumstances preclude completion of the inquiry within three (3) business days, DOJ management will be notified of the issues preventing completion and the anticipated completion date.
 - f) A copy of the summary report will be provided to the Contractor where necessary and appropriate.
- 4) Special Circumstances – Some circumstances may warrant immediate notification of local law enforcement (e.g., burglary of a facility operated by the Contractor or a sub-contractor). In those instances, notification to local law enforcement authorities shall occur contemporaneously with notification to the CO/COR, and the CO/COR shall be advised of the same.

TECHNICAL EXHIBIT 4

SAMPLE DISPOSITION ORDER

Disposition Order

[Print Form](#)
☐ FBI ☐ DEA ☐ HSI ☐ IRS ☐ USSS ☐ ATF ☐ USCG ☐ OTHER

 1. SEACATS Seizure Number
OR CATS ID

 2. Agency
Tracking Number

3. Date

4. Disposition Instructions:

☐ Remit	☐ Sell	☐ Transfer	☐ Destroy	☐ Manipulation	☐ Other
☐ Owner/Violator	☐ Export Only	☐ To Treasury Agency	Attach Order to Destroy (Complete Block 6)	(Complete Block 6)	(Complete Block 6) Including International Authorities
☐ Authorized Lien Holder/ Agent (Complete Block 6 & 7)	☐ Quick Sale	☐ Other Federal Agency			
☐ International LEA	☐ Interlocutory	☐ State & Local Law Enforcement			
☐ Court Directed		☐ Donation to Charitable Institution (Complete Block 6 & 7)			

☐ Asset Sharing
(Complete Block 6)

C.O.R Print Name

Contractor Phone Number

C.O.R. Signature

5. Identification of Property

☐ Only Sub-Line Items Listed Below

☐ All Items in Seizure

☐ Only Sub-Line Items Listed Below

☐ Partial Line Item Quantity Listed Below

Line Item No.	Description	Unit of Measure	Quantity

6. Special Instructions:

7. Release Property To:

Name of Agency or Organization

Phone Number

Name of Agency or Organization

Address

City

State

Alabama

Zip

8. Disposition Accomplished:

☐ Remit ☐ Sell ☐ Transfer ☐ Destroy ☐ Manipulate ☐ Other

Drivers License or Passport Number

Date Accomplished

Charges Paid \$

Sales Price Received \$

Sub-Contractor Print/Signature

Person Receiving Property Print/Signature

Contractor Print/Signature

Person Receiving Property Print/Signature

9. Seizing Agency:

Name/Title (Print)

Signature

Date

TECHNICAL EXHIBIT 5

SAMPLE HOLDING COST ESTIMATE

Insert: Name of Contractor

HOLDING COST CALCULATION WORKSHEET☐ RELEASE ☐ CHARGES ONLY

1. CATS NO./ASSET ID NO.		2. DISTRICT		3. DATE	
4. DISPOSITION INSTRUCTIONS:					
☒ REMIT ☐ TRANSFER ☐ OTHER		US GOVT. ABSORBED COSTS:		☐ All Holding Costs ☐ Partial Amount	
US GOVERNMENT'S RELEASING/REQUESTING OFFICIAL:					
NAME		TITLE		TELEPHONE NO. (FAX)	
5. IDENTIFICATION OF PROPERTY					
☐ Release all line items in seizure ☐ *Partial-Only line items listed below					
LINE ITEM NO.	DESCRIPTION	UNIT OF MEASURE	QUANTITY		
6. SPECIAL INSTRUCTIONS					
7. RELEASE PROPERTY TO:					
Property Owner/Authorized Agent					
8. CHARGE BY CLIN					
CLIN	TASK	Charges through [Date 1]*	Charges through [Date 2]*	Charges through [Date 3]*	
X002	Loading	\$	\$	\$	
X003	Transportation	\$	\$	\$	
X004	Storage – Non-Specialty Items	\$	\$	\$	
X005	Storage – Climate Controlled Items	\$	\$	\$	
X006	Storage – Hazardous Items	\$	\$	\$	
X007	Storage of Items in Administrative Custody	\$	\$	\$	
TOTAL HOLDING COSTS SUBTOTAL		\$	\$	\$	
9a. Overhead Rate: _____%			\$	\$	
9b. Seizure Cost Allocation Used for Calculation:			\$	\$	
10. Total Charges to Collect			\$	\$	
11. COMPLETED BY		DATE	13. VERIFIED		DATE
Contractor Employee Name					
12. REMARKS					

*HCE to provide costs through the next 30 calendar days, broken out and displayed in ten business day intervals

TECHNICAL EXHIBIT 6

PERFORMANCE REQUIREMENTS SUMMARY

The following paragraph numbers/sections have been chosen by the Government for performance standard monitoring.

Paragraph Number/Title	Requirement	Quality Standard	Acceptable Quality Level (AQL)	Timeliness Standard	Acceptable Quality Level (AQL)	Inspection Method
C.5	Specific Tasks					
C.5.1	Investigative Support Services Upon request, the Contractor shall conduct investigative work including detailed analysis of records to accomplish the goals of the forfeiture-related aspects of the investigation(s).	Investigative work meets service request requirements and is sufficient to perfect the Government's interest in forfeitable assets.	95%	To be determined on an individual service request basis.	N/A	100% Inspection
C.5.2	Litigation Support Services As directed, the Contractor shall provide country- and/or language-specific litigation support services.	Litigation support services meet service request requirements.	95%	To be determined on an individual service request basis.	N/A	100% Inspection
C.5.3	Expert Witness Services The Contractor shall assist in identifying, screening, and selecting foreign expert witnesses.	Services provided meet service request requirements.	95%	To be determined on an individual service request basis.	N/A	100% Inspection
C.5.4	International Sharing Program Services As specified in a service request, the Contractor shall assist the Government in executing and validating spending under specific international sharing agreements.	Services provided meet service request requirements.	100%	To be determined on an individual service request basis.	N/A	100% Inspection

Paragraph Number/Title	Requirement	Quality Standard	Acceptable Quality Level (AQL)	Timeliness Standard	Acceptable Quality Level (AQL)	Inspection Method
C.5.5	Other Assistance Services, Special Conveyances and Unusual Assets As specified in a service request, the Contractor shall assist the Government in a wide variety of assistance services covering an array of assets.	Services provided meet service request requirements.	95%	To be determined on an individual service request basis.	N/A	100% Inspection
C.5.6	Property Management					
C.5.6.1	Pre-Seizure Services As specified in a service request, the Contractor shall provide pre-seizure coordination and planning services.	Services provided, including but not limited to pre-positioning of resources, meet service request requirements.	95%	To be determined on an individual service request basis.	95%	Validated Customer Complaint
C.5.6.2	Consignment/Acceptance The Contractor shall accept custody of property on the date, time, and place specified by the COR.	The Contractor is available at all times to accept custody of property at the time, date, and location specified by the COR.	95%	Consignment is completed within 12 hours of time and date designated by COR unless waiver is approved.	100%	Validated Customer Complaint
C.5.6.2	Consignment/Acceptance The Contractor shall verify the chain of custody document provided by the COR for accuracy and completeness.	Review of custody document is accurate and complete.	95%	Custody document is verified prior to acceptance of property.	95%	Random Sample
C.5.6.2	Consignment/Acceptance The Contractor shall address and resolve any discrepancies in item counts on the chain of custody document.	Discrepancies are adequately addressed and resolved.	95%	Discrepancies are addressed and resolved before loading property on or into the Contractor's transport vehicles/trailers, if required.	95%	Random Sample

Paragraph Number/Title	Requirement	Quality Standard	Acceptable Quality Level (AQL)	Timeliness Standard	Acceptable Quality Level (AQL)	Inspection Method
C.5.6.2	Consignment/Acceptance The Contractor shall document unresolved disagreements regarding consignment/acceptance between the Contractor and the COR and process the disagreement as an Adverse Incident.	Adverse Incidents are adequately documented and processed following the procedures detailed in Technical Exhibit 3.	95%	Appropriate actions are taken by the Contractor within the timeliness standards specified in Technical Exhibit 3.	95%	Random Sample
C.5.6.3	Property Identification The Contractor shall identify and label all property with the Asset Identification Number (AIN) and case number/sequence number assigned by the seizing agency and with the current location within the storage facility.	Property is identified and labeled with the correct AIN, case number/sequence number, and current location and identification label is visible to the maximum extent possible.	98%	Property is located and provided within one (1) business hour of request.	98%	Random Sample
C.5.6.4	Storage The Contractor shall store property in the most cost-effective method available to prevent any deterioration of the property and to maintain the overall condition of the property as it was at the time of acceptance.	Property is stored in a manner that is cost efficient and maintains the overall condition of the property.	95%	No standard	N/A	Random Sample
C.5.6.4	Storage The Contractor shall ensure that seals on sealed packages and containers remain intact.	Seals on sealed packages and containers remain intact.	95%	No standard	N/A	Random Sample

Paragraph Number/Title	Requirement	Quality Standard	Acceptable Quality Level (AQL)	Timeliness Standard	Acceptable Quality Level (AQL)	Inspection Method
C.5.6.5	Storage of Items Requiring Climate Control The Contractor shall make reasonable and best efforts to properly store items that must be cooled, refrigerated, or kept at specific humidity levels to prevent deterioration or spoilage.	Reasonable and best efforts are made to ensure items are properly stored to prevent deterioration or spoilage in accordance with any special handling instructions provided by the COR.	95%	No standard	N/A	Random Sample
C.5.6.6	Maintenance As directed by the COR, the Contractor shall make reasonable and best efforts to maintain and preserve property as necessary to ensure that it retains its value, operating ability, and overall condition from the time of acceptance until disposition.	Reasonable and best efforts are made to ensure property is maintained and preserved such that it retains its value, operating ability, and overall condition.	95%	Maintenance of stored property is performed within two (2) business days of discovery of deterioration, damage, inoperability, etc.	95%	Planned Sample
C.5.6.6	Maintenance The Contractor shall inspect and replace deteriorating, torn, and damaged packaging for stored property unless under seal of the seizing agency.	Deteriorating, torn, and damaged packaging, unless under seal of the seizing agency, is replaced.	95%	Deteriorated, torn, and damaged packaging is replaced within two (2) business days of discovery.	95%	Random Sample
C.5.7	Property Disposition					
C.5.7	Property Disposition As directed, the Contractor shall dispose of seized and forfeited property in accordance with the disposition order signed by the COR.	Property is disposed of in accordance with the disposition order. See below for further disposition standards.	98%	To be determined on an individual service request basis. See below for further disposition standards.	98%	Random Sample

Paragraph Number/Title	Requirement	Quality Standard	Acceptable Quality Level (AQL)	Timeliness Standard	Acceptable Quality Level (AQL)	Inspection Method
C.5.7	Property Disposition The Contractor shall provide the COR and seizing agent issuing the disposition order a minimum of two (2) business days advanced notice of the date, time, and location of disposition.	Information (date, time, and location of disposition) provided is accurate and complete.	95%	Notice of date, time, and location of disposition is provided to COR and seizing agent at least two (2) business days prior to disposition.	95%	Random Sample
C.5.7	Property Disposition The Contractor shall maintain accurate records of all dispositions.	Records for all dispositions are accurate and complete.	95%	No Standard	N/A	Random Sample
C.5.7	Property Disposition The Contractor shall provide an electronic copy of the completed disposition order to the COR, and shall send the original authenticated disposition order to the COR within two (2) business days (except for cases involving disposition by sale). If there are multiple case numbers/sequence numbers on the chain of custody document, and there is a partial release, the Contractor shall provide a copy of the original chain of custody document to the COR within two (2) business days of accomplishing the partial disposition.	Document and information sent are accurate and complete.	100%	Applicable documents are provided to the COR within two (2) business days after each disposition or partial disposition.	95%	100% Inspection
C.5.7	Property Disposition Upon completion of disposition, the Contractor shall update the ICMIS.	Data entered into the ICMIS is current, complete, and accurate.	95%	ICMIS data entry is completed within two (2) business days after each disposition.	95%	Random Sample

Paragraph Number/Title	Requirement	Quality Standard	Acceptable Quality Level (AQL)	Timeliness Standard	Acceptable Quality Level (AQL)	Inspection Method
C.5.7.1	Destruction The Contractor shall destroy property within five (5) business days of receipt of the disposition order unless a variance is provided in writing by the COR for unusual circumstances.	The Contractor shall destroy property as specified by the disposition order and in accordance with the requirements set forth in the SOW.	95%	Destruction is completed within five (5) business days of receipt of disposition order or by the time specified in a variance approved by the COR.	95%	Random Sample
C.5.7.1	Destruction When necessary, the Contractor shall request a waiver of the destruction timeframe via an e-mail submitted to the COR.	Contractor's waiver request is accurately completed via e-mail, and the explanation of the delay conditions is reasonable.	95%	Waiver request email is sent to COR within two (2) business days of receipt of destruction disposition order.	95%	Random Sample
C.5.7.2	Remittance					
C.5.7.2.1	Develop Cost Estimates Upon request of the COR, the Contractor shall submit an accurate Holding Cost Estimate (HCE) and a Government Overhead Cost Estimate (GOCE).	Contractor's estimates are accurate, comprehensive, and formatted correctly.	95%	Cost estimates are provided to COR within two (2) business days from receipt of request.	95%	Random Sample
C.5.7.2.2	Remit Property to Owners The Contractor shall remit property to the party designated by the COR.	Property is remitted to correct party in the manner prescribed on the disposition order.	95%	First attempt to release property is completed within eight (8) business hours of receipt of disposition order.	95%	Random Sample
C.5.7.3	Retention by Seizing Agency As directed, the Contractor shall release property to the agency organization designated on the signed disposition order.	Property is released to correct agency organization in the manner prescribed on the disposition order.	95%	First attempt to release property is completed within the timeframe specified in the disposition order.	95%	Random Sample

Paragraph Number/Title	Requirement	Quality Standard	Acceptable Quality Level (AQL)	Timeliness Standard	Acceptable Quality Level (AQL)	Inspection Method
C.5.7.4	Transfer to Other Federal, State, Local or Foreign Agencies The Contractor shall release property to agencies designated in writing by the COR.	Property is transferred to correct agencies in the manner prescribed on the disposition order.	95%	First attempt to release property is completed within one (1) business day of receipt of disposition order.	95%	Random Sample
C.5.7.5	Packing and Preparation for Transport to Disposition Locations The Contractor shall pack and prepare seized and forfeited property for shipment to disposition locations.	Property is packed and prepared for shipment in a safe, secure, and cost-effective manner and in accordance with COR instructions and the requirements as specified in the SOW.	95%	To be determined on an individual service request basis.	N/A	Random Sample
C.5.7.6	Sales The Contractor shall conduct sales as directed by disposition orders, to include specifications included on any court/interlocutory orders.	Sales are conducted in accordance with disposition orders.	95%	To be determined on an individual service request basis.	95%	Random Sample
C.5.7.6.2	Sale Planning and Scheduling – Determination of Fair Market Value (FMV) Upon request of the COR, the Contractor shall establish FMV for property at the time it is designated for sale and enter the data into the ICMIS.	FMV for property is accurate and established using past sales experience, local merchants, trade catalogs and publications, manufacturers, third-party appraisers, or other knowledgeable persons.	95%	FMV is entered into the ICMIS and a copy of the appraisal provided to the COR within five (5) business days of receipt of request.	95%	Random Sample

Paragraph Number/Title	Requirement	Quality Standard	Acceptable Quality Level (AQL)	Timeliness Standard	Acceptable Quality Level (AQL)	Inspection Method
C.5.7.6.2	Sale Planning and Scheduling – Sales Plan For each sale, the Contractor shall prepare a sales plan and schedule to ensure that all deadlines and tasks are completed.	Sales plans are appropriate for the item(s) being sold and provide solutions that are likely to generate highest possible revenue for the Government in the least costly manner.	95%	Sales plan is submitted to the COR within five (5) business days of receipt of the disposition order.	100%	Random Sample
C.5.7.6.5	Sales Notices The Contractor shall prepare and distribute sales notices and other sales-related materials for each sale as requested by the COR.	Sale notice and related material provide accurate information and the specified content (location, contact information, etc.).	95%	Terms and Conditions of Sale are available to the public at least two (2) full business days prior to the date of the public viewing for the sale.	95%	Random Sample
C.5.7.6.6	Notification of Sale The Contractor shall email a description of the property to be sold to the COR.	Description of property is accurate.	95%	Description of property is emailed to COR no later than two (2) business days prior to the sale date.	95%	Random Sample
C.5.7.6.11	Notification of Sold Property The Contractor shall submit the original executed disposition order and other sale or custody documentation to the COR.	Post-sale documentation processing is completed accurately.	95%	Documentation is submitted to the COR within two (2) business days after the sold property has been transferred to the purchaser.	95%	Random Sample

Paragraph Number/Title	Requirement	Quality Standard	Acceptable Quality Level (AQL)	Timeliness Standard	Acceptable Quality Level (AQL)	Inspection Method
C.5.8	Accounting and Financing					
C.5.8.1	Accounting and Financing Standards The Contractor shall only receive funds and other types of payment from the authorized sources specified in the SOW. If the Contractor receives funds or any other type of payment from any source other than those specified in the SOW, the Contractor shall report the receipt of such funds to the COR.	Funds and any other types of payment are received only from the sources specified in the SOW.	98%	Funds or any other types of payment received from sources not specified in the SOW are reported to the COR no later than eight (8) business hours after receipt.	98%	Random Sample
C.5.8.2	Accounting for Sales For each sale, the Contractor shall maintain documentation of accounts receivable, the deposit of monies, and the processing of funds transactions, in a manner approved by the COR.	Accounting documentation for sales is maintained in a manner approved by the COR.	100%	No standard	N/A	N/A
C.5.8.3	Accounting for Non-Sales Dispositions The Contractor shall maintain financial records for all property dispositions other than sales.	Accounting documentation for non-sale dispositions is maintained in a manner approved by the COR.	100%	No standard	N/A	N/A

Paragraph Number/Title	Requirement	Quality Standard	Acceptable Quality Level (AQL)	Timeliness Standard	Acceptable Quality Level (AQL)	Inspection Method
C.5.8.6	Transfer of Funds to the Government Depository Account The Contractor shall transfer all funds, including seized funds, in accordance with the Treasury Financial Manual to the Government Depository Account Agency Location Code (ALC).	See below for standards.	N/A	See below for standards.	N/A	N/A
C.5.8.6.1	Sale Revenue The Contractor shall transfer sale revenue to the ALC.	All funds received are deposited accurately and completely into the proper account, identifying the appropriate sale number and agency.	100%	Sale revenue is deposited within five (5) business days after collection.	95%	100% Inspection
C.5.8.6.1	Sale Revenue The Contractor shall send a sale revenue memorandum via fax or electronic means to the COR including the information specified in the SOW.	Memorandum is transmitted accurately and includes the information specified in the SOW.	100%	Memorandum is sent to COR no later than five (5) business days from the final date of sale collection.	95%	100% Inspection
C.5.8.6.2	Non-Sale Revenue All funds collected by the Contractor shall be deposited or transferred to the ALC.	All funds received are deposited or transferred accurately and completely into the proper account, identifying the type of funds and agency.	100%	Non-sale revenue is deposited within three (3) hours after collection.	95%	100% Inspection

Paragraph Number/Title	Requirement	Quality Standard	Acceptable Quality Level (AQL)	Timeliness Standard	Acceptable Quality Level (AQL)	Inspection Method
C.5.8.6.3	Reporting Requirements					
C.5.8.6.3	Reporting Requirements – Revenue Detail Sale Report The Contractor shall provide to the COR, via electronic means, a Revenue Detail Sale report.	Revenue Detail Sale report is accurate and includes the required information.	95%	Report is sent to the COR no later than ten (10) business days after each sale.	95%	100% Inspection
C.5.8.6.3	Reporting Requirements – Monthly Cash Transfer Report The Contractor shall provide to the COR, via electronic means, a monthly report with narrative detail and reconciliation of all sale and non-sale collections made during the prior month.	Monthly report is accurate and includes the required information.	95%	Report is sent to the COR by the tenth (10 th) calendar day of each month.	95%	100% Inspection
C.5.8.6.3	Reporting Requirements – Year-End Bank Statements The Contractor shall provide the COR with copies of monthly bank statements for the entire fiscal year from each bank that is used to deposit monies.	Copies of bank statements are accurate, complete, and legible.	95%	Copies are forwarded to the COR annually no later than 20 October.	95%	100% Inspection
C.5.8.6.3	Reporting Requirements – Final Revenue/Expense Sale Report The Contractor shall submit a Final Revenue/Expense Sale Report to the COR.	Final Revenue/Expense Sale Report is accurate and includes the required information.	95%	Report is submitted to COR no later than ten (10) business days after the end of each sale.	95%	100% Inspection

Paragraph Number/Title	Requirement	Quality Standard	Acceptable Quality Level (AQL)	Timeliness Standard	Acceptable Quality Level (AQL)	Inspection Method
5.8.7	Shortages/ Overages of Collections The Contractor shall resolve all discrepancies regarding transferred and deposited funds.	Discrepancies are fully investigated by the Contractor. Overages are accurately remitted or shortages are accurately made up in a manner agreed upon by the COR.	100%	Discrepancies are resolved within two (2) business days of discovery.	95%	100% Inspection
C.5.9	Program Reviews					
C.5.9.1	Annual Inspection and Audit The Contractor shall conduct a 100% annual reconciliation inventory for each Contractor-provided storage facility operated under this contract.	Inventories are accurate, comprehensive, and in accordance with industry best practices for 100% inventories. Contractor cooperates fully with third-party auditors, if so assigned by the Government to assist in or to observe the inventory process.	98%	To be determined on an individual basis using timeliness standards set forth by CO or COR.	100%	100% Inspection
C.5.9.1	Annual Inspection and Audit The Contractor shall correct and update in the ICMIS deficiencies identified by any audit findings.	Discrepancies are fully corrected and accurately updated in the ICMIS.	100%	Discrepancies are corrected and updated in the ICMIS within 15 calendar days or as approved by the CO/COR.	100%	100% Inspection

Paragraph Number/Title	Requirement	Quality Standard	Acceptable Quality Level (AQL)	Timeliness Standard	Acceptable Quality Level (AQL)	Inspection Method
C.5.9.2	Other Randomized Location Inventory As directed by the DOJ CO, the Contractor shall conduct storage location inventories in addition to the annual inspection and audit.	Contractor-conducted inventories are accurate, comprehensive, and in accordance with industry best practices and the requirements specified in the SOW.	98%	To be determined on an individual basis using timeliness standards set forth by CO or COR.	100%	100% Inspection
C.5.9.2	Other Randomized Location Inventory The Contractor shall report all discrepancies found during inventories as Adverse Incidents to the COR.	Discrepancies are accurately and comprehensively reported to the COR.	100%	Discrepancies are reported to COR as Adverse Incidents within two (2) business days of completion of the inventory.	100%	100% Inspection
C.5.9.2	Other Randomized Location Inventory The Contractor shall reconcile discrepancies in the ICMIS in coordination with the COR.	Reconciliations are accurate.	100%	ICMIS is reconciled within five (5) business days after receipt of Government response to the discrepancy report.	100%	100% Inspection
C.5.10	Call Receiving and Dispatch Operations The Contractor shall provide “around the clock” (i.e. 24-7) work reception with a central telephone number and fax number by which the COR can request services on new or existing service request. An answering service between 08:00 PM and 08:00 AM Eastern Standard Time and on weekends and holidays is acceptable if it is able to transfer calls to the Contractor’s on-call dispatcher within five (5) minutes.	Calls are promptly received and accurately processed/transferred in a manner which meets service request requirements.	95%	The Contractor directly transfers calls to a dispatcher within five (5) minutes.	95%	Validated Customer Complaint

Paragraph Number/Title	Requirement	Quality Standard	Acceptable Quality Level (AQL)	Timeliness Standard	Acceptable Quality Level (AQL)	Inspection Method
C.9.1	Document Management The Contractor shall provide electronic, readable copies of executed forms to the COR and submit hard copies with original signatures.	Electronic copies are legible and provided using the mechanism identified by the Contractor in its Technical Proposal.	95%	Electronic copies are provided within the timeframes specified in the SOW. Hard copies are submitted within an additional five (5) business days or as otherwise specified in the SOW.	95%	100% Inspection
C.9.2	Access to Records Upon request of the COR, the Contractor shall provide to the CO, COR, or any other designated Government representative, access to the records required to be maintained under this Contract.	No standard	N/A	Access is provided within one (1) business day of request.	95%	100% Inspection
C.9.3	Recordkeeping The Contractor shall maintain and store, in an indexed and readily retrievable form, the records and documentation for a period of one (1) year following the completion of the task order. After the one-year retention period expires, the Contractor shall, at the request of the COR, forward the records to the COR or destroy the records and provide a certificate of destruction.	Records and documents are stored in an indexed and readily retrievable manner and are stored for the appropriate length of time.	90%	At the end of the one-year retention period, upon COR request, records and documents are forwarded to the COR or destroyed within the time period specified by the COR.	95%	Random Sampling

Paragraph Number/Title	Requirement	Quality Standard	Acceptable Quality Level (AQL)	Timeliness Standard	Acceptable Quality Level (AQL)	Inspection Method
C.10	Deliverables					
C.10.1	Monthly Status Report The Contractor shall submit a monthly written status report to the COR.	Report is accurate and includes the required information.	95%	Report is submitted on or before the fifth business day after the end of the month.	95%	100% Inspection
C.10.2	Monthly Management Report The Contractor shall submit a management report summarizing significant information and events from the previous month that impact the operation and cost of the Contract.	Management report is accurate and includes the required information.	95%	Report is submitted by the tenth business day of each month.	95%	100% Inspection
C.10.3	Workload Reports The Contractor shall maintain and provide monthly workload counts to the COR. On a quarterly and annual basis, the Contractor shall provide a roll-up report consolidating the data from the monthly reports.	Workload counts are submitted in a Government-approved format using Microsoft Excel and are consistent, accurate, and maintained as specified in the SOW.	98%	Workload Reports are submitted: Monthly – on or before the tenth business day of the following month. Quarterly (roll-up) – on or before the tenth business day following the end of the quarter. Annually (roll-up) – on or before the tenth business day following the end of the fiscal year.	95% 95% 95%	100% Inspection

Paragraph Number/Title	Requirement	Quality Standard	Acceptable Quality Level (AQL)	Timeliness Standard	Acceptable Quality Level (AQL)	Inspection Method
C.10.4	Organizational Contacts The Contractor shall maintain an organization chart as well as a list of the names, work addresses, and telephone numbers of the supervisory and management personnel with authority to represent the Contractor.	Organizational chart and list are accurate and include the required information.	95%	COR is notified in writing within seven (7) calendar days when changes are made.	95%	100% Inspection
C.10.5	Factors Affecting Performance Report The Contractor shall submit a detailed written report describing events or occurrences within the scope of this contract that negatively affect satisfactory performance of this contract.	Report contains accurate and comprehensive information.	95%	Written report is submitted to COR within two (2) business days of the discovery of the events or occurrence.	95%	100% Inspection
C.10.6	Ad Hoc Reports The Contractor shall prepare management and operational reports on an ad hoc basis as directed by the DOJ CO or COR.	Reports meet the requirements of the request.	95%	To be determined on an individual report basis.	N/A	100% Inspection
C.10.7	Performance Evaluation Meeting Minutes The Contractor shall take minutes during performance evaluation meetings which highlight the topics of discussion.	Minutes contain accurate and comprehensive information.	95%	Minutes are submitted within five (5) business days of the meeting.	95%	Planned Sample

Paragraph Number/Title	Requirement	Quality Standard	Acceptable Quality Level (AQL)	Timeliness Standard	Acceptable Quality Level (AQL)	Inspection Method
C.10.8	Management Recommendations and User Needs Analysis On a quarterly basis, or as directed by the DOJ CO or COR, the Contractor shall provide input and recommendations for strategic planning, goal setting, tracking, reporting, user needs analysis, usage studies, and feedback tracking.	Input and recommendations are well thought out, implementable, cost-effective, and comprehensive.	95%	Quarterly – Input and recommendations are provided by the tenth business day following the end of the quarter. As Requested - To be determined on an individual report basis.	95% 95%	Planned Sample
C.10.9	“What If” Analysis The Contractor shall respond to requests for “what if” analyses.	Analysis/response is accurate, contains the required information, and is in the format specified by the CO or COR.	95%	To be determined on an individual report basis.	N/A	Planned Sample
C.10.10	Location Information The Contractor shall maintain an up-to-date and accurate listing of the location of all consigned property and an up-to-date listing of each storage facility’s point of contract (POC), their primary and emergency contact information, and the physical address of the facility.	Listing is accurate and current.	95%	No standard	N/A	Random Sample
C.10.11	Adverse Incident Reports The Contractor shall inform the CO and COR, by electronic means, of the occasion and extent of any loss, destruction, and/or damage of property or unauthorized entry.	Adverse Incident Report is submitted electronically and is accurate and contains the required information.	100%	Report is provided by COB the business day following the adverse incident.	100%	100% Inspection

Paragraph Number/Title	Requirement	Quality Standard	Acceptable Quality Level (AQL)	Timeliness Standard	Acceptable Quality Level (AQL)	Inspection Method
C.10.12	Final Adverse Incident Reports The Contractor shall submit a written final report of investigation to the COR.	The Contractor's Adverse Incident Final Report is accurate and contains the required information.	100%	Report is submitted within thirty (30) calendar days of the incident. If a final report of investigation cannot be completed within 30 calendar days, an interim report shall be submitted in place of the final report.	100%	100% Inspection

TECHNICAL EXHIBIT 8

PUBLICATIONS AND FORMS

Publications and forms applicable to the SOW are listed below. Further publications specific to the DOJ AFMLS can be found at: <https://www.justice.gov/criminal/criminal-mlars/publications>

PUBLICATIONS

Specification Number	Title	Internet Link(if available)
n/a	DOJ Asset Forfeiture Manual	https://www.justice.gov/media/1140236/dl?inline
48 CFR 2.101	Definitions	https://www.ecfr.gov/current/title-48/chapter-1/subchapter-A/part-2/subpart-2.1/section-2.101
GAO/AFMD-12.19.4	Chief Financial Officers (CFO) Act of 1990	https://www.gao.gov/products/afmd-12.19.4
TFM	Treasury Financial Manual (TFM)	https://tfx.treasury.gov/tfm/volume1
JM, Title 9, CRM	Justice Manual, Title 9, Criminal	https://www.justice.gov/jm/title-9-criminal

FORMS

Form Number	Form Title	Internet Link (if available)
Standard Form (SF)-215	Deposit Ticket	